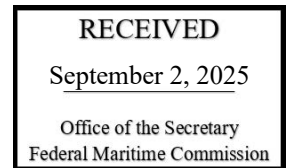


Roger Waterloo dba EcoBamboo
712 Shawnee St.
South Coffeyville, OK 74072
Tel: 479-402-1830
Email: rodebos@hotmail.com

Docket No. 25-26



Date: August 29, 2025

Office of the Administrative Law Judges
Federal Maritime Commission
800 North Capitol Street, NW
Washington, D.C. 20573

Re: Formal Complaint – Roger Waterloo dba EcoBamboo v. Ship4wd, Inc.
Docket No. [to be assigned]

Dear Presiding Judge and Commission Clerk,

Please find enclosed for filing a Formal Complaint under the Shipping Act of 1984 against Ship4wd, Inc., an FMC-licensed NVOCC operating through Marine Shipp Fast Ltd.

The central issue in this Complaint is Respondent's handling of Complainant's shipment of bamboo products (Container No. DFSU1191760, Entry 8PY-20160957), which was rejected by U.S. Customs and Border Protection upon arrival and ordered re-export due to live insect infestation and fumigation/documentation irregularities (see [EX-CL-1 – Exhibits Central to Initial Regulatory Review](#)). Despite Respondent's assurances and documentation, the shipment failed to comply with U.S. import requirements, leading directly to re-export, substantial financial loss, and disruption of Complainant's business.

The Complaint sets forth:

- Respondent's procedural failures and misrepresentations in the fumigation and phytosanitary certification process;
- Omission of required USDA/APHIS import permit advisement;
- Improper handling of third-party agents and documentary responsibilities;
- The direct causation of damages, including cargo loss and lost sales, with other potential costs excluded due to lack of direct attribution (see [Losses and Damages](#)).

As outlined in the Complaint and supported by exhibits, Respondent's conduct constitutes unjust and unreasonable practices under 46 U.S.C. § 41102(c) and related FMC regulations.

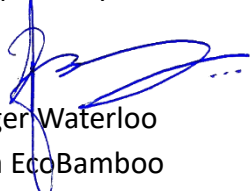
Accordingly, Complainant respectfully requests that the Commission:

1. Require Respondent to answer the charges in the Complaint;
2. Order Respondent to cease and desist from Shipping Act violations;
3. Award Complainant reparations for the damages sustained, together with interest, the FMC filing fee paid by Complainant pursuant to 46 CFR § 502.62, and other reasonable and incidental costs; and
4. Provide such other relief as the Commission deems just and proper.

Please note: the filing fee of \$387.00 was paid on August 30, 2025, receipt attached for reference.

I respectfully request confirmation of receipt and docket assignment at your earliest convenience, to prompt a procedural response. I remain available to provide further information or clarification as required.

Respectfully submitted,



Roger Waterloo
dba EcoBamboo
Email: rodebos@hotmail.com
Tel: 479-402-1830

Table of Contents

Formal Complaint – EcoBamboo v Ship4wd (Annotated)	6
Section 1 – The Complainant	6
Section 2 – The Respondent	6
Section 3 – Jurisdiction and Legal Authority	7
Section 4 – The Matter Complained Of (Alleged Facts)	7
4.1 Agreement on Treatment	7
4.2 Official Inspection in Indonesia	7
4.3 Fumigation Process and Discrepancies	7
4.4 U.S. Port Hold and CBP/APHIS Findings	7
4.5 Acceptance of Re-Export Costs	8
4.6 Damages Incurred	8
4.7 Statutory Violation	8
Section 5 – Causation	8
Section 6 – Damages	9
Section 7 – Request for Relief	10
Section 8 – Request for Oral Hearing	10
Violation Matrix – FMC-Relevant Breaches	11
Exhibit Index – Organized by Topic	14
Section A – Core Regulatory & Procedural Documents	14
Section B – Contractual, Transaction & Cost Responsibility	14
Section C – Fumigation Process & Related Evidence	14
Section D – USDA/CBP Enforcement & Entry Denial	15
Section E – Access & Procedural Closure	15
Exhibit Index EX-A to EX-AF	16
Index 1: EX-A to EX-D	16
Index 2: EX-E to EX-N	17
Index 3: EX-O to EX-X	18
Index 4: EY-Y to EX-AF	19
Exhibit Annotation Digest – EX-A to EX-AF	20
EX-A Correspondence with Ship4wd regarding quote request	20
EX-B USDA Response Regarding Lacey Act Applicability	21
EX-C Export License Coordination with Ship4wd	21
EX-D Fumigation and Phytosanitary Coordination with Ship4wd	22

EX-E Booking Confirmation and Export Coordination with Ship4wd	23
EX-F Export Licensing, Phytosanitary Coordination, and Regulatory Oversight with Ship4wd	24
EX-G Final Cargo Readiness and Updated Quote Request to Ship4wd	25
EX-H Final Quote Confirmation, Payment, and Booking Update from Ship4wd	26
EX-I Customs Broker Onboarding and Power of Attorney Request via Ship4wd and Clearit USA	28
EX-J Vessel Departure Confirmation and Customs Broker POA Verification via Ship4wd and Clearit USA	29
EX-K Documentation Request, Certificate Drafting Burden, and AMS/ISF Oversight for FCL Shipment 0H16V7f2bZ	30
EX-L Fumigation and Phytosanitary Certificate Clarification Exchange	32
EX-M Final Fumigation & Phytosanitary Certificates for FCL Shipment 0H16V7f2bZ	33
EX-N USDA Rejection and Immediate Export Order for Container DFSU1191760	34
EX-O Ship4wd Admission of Procedural Delays and Incorrect Certification Handling	35
EX-P Official Demand for Resolution Following CBP Infestation Finding and Documentation Failure	36
EX-Q Indonesian Consulate Verification of Phytosanitary Certificate Validity	38
EX-R Ship4wd Deflection of Responsibility Amid CBP Hold and USDA Documentation Failure	39
EX-S CBP Enforcement Clarification on Entry Denial, USDA Permit Failure, and Broker Misconduct	40
EX-T Formal Demand Regarding APHIS Permit Omission and Entry Denial	41
EX-U Ship4wd Response Series to Formal Demand and Re-Export Coordination Request ...	43
EX-V Final Demand Regarding Ship4wd Non-compliance and APHIS Permit Failure	44
EX-W Ship4wd Rejection of Import Liability and Misrepresentation of Broker Scope	45
EX-X Ship4wd Conditional Acceptance of CADRS Mediation and Continued Deflection of Import Liability	47
EX-Y POA Dispute & CBP Misrepresentation Thread	48
EX-Z Clause-by-Clause Annotation: Ship4wd “Final Notice” Email July 29, 2025	49
EX-AA WhatsApp Transcript Ms. Monica Halim, PT Kemasindo Cepat Nusantara (KCN): Multiverse Exim Pvt Ltd (Multiverse) Accepts Refumigation Costs (Post-EAN)	51
EX-AB WhatsApp Transcript: Ms. Monica Halim (KCN) & Ship4wd Context	52
EX-AC Email from Multiverse: Written Confirmation of Cost Assumption	53
EX-AD WhatsApp Directive to Bypass AQIS Gas-Out Requirement	53
EX-AE Dashboard Lockout During Active Regulatory Dispute	54
EX-AF Index Closure & Escalation Addendum for Entry #8PY-20160957	55

Losses & Damages	57
Exhibit Annotation Digest — EX-31 TO EX-37	59
EX-31 – Verified Out-of-Pocket Expenses.....	59
EX-32 – Interest Charges Attributable to Disputed Transactions	60
EX-33 – Lost Sales & Sample Fence Material	61
EX-34 – Operational Time Loss (EcoBamboo Commitment Assessment).....	62
EX-35 – Re-Order Bamboo (Post-Dispute Financial & Operational Impact)	63
EX-36 – Market Timing Breakdown & Strategic Cycle Loss	64
EX-37 – Consolidated Loss Summary & Two-Scenario Impact Statement.....	64
Certificate of Service.....	67

Formal Complaint – EcoBamboo v Ship4wd

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

Date: August 29, 2025

BEFORE THE FEDERAL MARITIME COMMISSION OFFICE OF ADMINISTRATIVE LAW JUDGES

Complainant:

Roger Waterloo dba EcoBamboo

vs.

Respondent:

Ship4wd, Inc.

Docket No. 25-26

Formal Complaint Under the Shipping Act of 1984

Section 1 – The Complainant

Roger Waterloo, dba EcoBamboo, engaged in the export from Indonesia and import into the United States of **bamboo sheets and bamboo poles for privacy fencing and construction purposes**, as well as related regulatory documentation services, with principal place of business at **712 Shawnee St., South Coffeyville, OK 74072**, email: **rodebos@hotmail.com**, and telephone: **479-402-1830**.

Section 2 – The Respondent

Ship4wd, Inc., operated under **FMC OTI License No. 029468** through **Marine Shipp Fast Ltd.**, with principal place of business at **9 Andrei Sakharov Street, Haifa 3190500, Israel**, engaged in the business of providing ocean transportation intermediary services as a non-vessel-operating common carrier (NVOCC). Ship4wd markets its services as **‘powered by’ ZIM Integrated Shipping Services Ltd.**, as advertised in its own commercial materials, an ocean common carrier providing international cargo transport services. Marine Shipp Fast Ltd. maintains an active FMC license valid through June 24, 2027, with a \$150,000 surety bond issued by Harco National Insurance Company (Bond No. 0716091). The Respondent may be contacted via email at **shay.miletsky@ship4wd.com**, the address of its designated representative, Mr. Shay Miletsky, who acted as liaison during the relevant transactions.

Section 3 – Jurisdiction and Legal Authority

This complaint is brought pursuant to the **Shipping Act of 1984**, as amended, **46 U.S.C. §§ 40101–41309**. The **Federal Maritime Commission** has jurisdiction under **46 U.S.C. § 41301** to adjudicate violations of the **Shipping Act** and to award reparations to injured parties. The acts and omissions alleged herein constitute violations of **46 U.S.C. Chapter 411**, including but not limited to **§ 41102(c)**, which requires common carriers, marine terminal operators, and ocean transportation intermediaries to **establish, observe, and enforce just and reasonable regulations and practices** relating to or connected with receiving, handling, storing, and delivering property.

Section 4 – The Matter Complained Of (Alleged Facts)

4.1 Agreement on Treatment

On or about March 19, 2025, Respondent, through its subcontractor Multiverse Exim Pvt Ltd, agreed with PT Kemasindo Cepat Nusantara (KCN) to perform “normal fumigation / no AQIS” treatment on Complainant’s shipment of bamboo sheets and bamboo poles exported from Indonesia to the United States. This agreement to avoid gas-tight, AQIS-standard fumigation was documented in a timestamped WhatsApp conversation between KCN and Multiverse ([EX-AD](#)).

4.2 Official Inspection in Indonesia

On March 21, 2024, the shipment was officially inspected in Indonesia by the Indonesian Agricultural Quarantine Agency (Draft Phytosanitary Certificate ([EX-K](#), [EX-L](#))).

4.3 Fumigation Process and Discrepancies

On March 24, 2025, fumigation was performed by PT. Tiga Permata Selaras, and a Draft Fumigation Certificate was issued April 8, 2025 stating treatment with Methyl Bromide (CH₃Br) at 48 g/m³ for 24 hours at 25 °C under gas-tight enclosure in Bekasi, West Java ([EX-K](#)). In reality, fumigation was conducted in Jakarta Utara and not under a gas-tight enclosure for the required 24 hours ([EX-AD](#)).

The original signed fumigation and phytosanitary certificates ([EX-M](#)) were issued on May 2, 2025—subsequent to the draft certificate referenced in EX-M—and reflect discrepancies in location, treatment conditions, and enclosure integrity.

4.4 U.S. Port Hold and CBP/APHIS Findings

Upon arrival at the U.S. port of entry, CBP placed the shipment on hold following review of ACE/AMS filings and ISF data, which revealed no valid USDA/APHIS import permit for the consignment ([EX-E](#), [EX-F](#), [EX-T](#), [EX-S](#)). CBP’s subsequent inspection under USDA/APHIS authority identified the fumigation-protocol non-compliance described above and detected live insect

infestation in the bamboo products ([EX-N](#), [EX-O](#)). These findings, individually and collectively, formed the stated basis for rejection of the shipment and denial of lawful entry into the United States.

4.5 Acceptance of Re-Export Costs

A subcontractor engaged by Respondent — Multiverse Exim Pvt Ltd — accepted and paid for re-export costs without protest ([EX-AB](#), [EX-AC](#)). This conduct is consistent with prior knowledge or acceptance of the non-compliance risk before shipment.

4.6 Damages Incurred

As a direct and proximate result of Respondent's acts and omissions, Complainant suffered financial losses, including loss of cargo value, re-export costs, storage/demurrage, and other consequential damages. ([EX-31 – EX-37](#), per Loss & Damages packet cross-referenced in Section 6)

4.7 Statutory Violation

The foregoing conduct constitutes unjust and unreasonable practices in violation of 46 U.S.C. § 41102(c) and other applicable provisions of the Shipping Act (supported throughout by violation summaries in **EX-A** through **EX-AG** as catalogued in the [Violation Matrix](#)).

Section 5 – Causation

The events described in Section 4 demonstrate how Respondent's conduct directly caused the harms suffered by Complainant:

1. **Material Misrepresentation** – As shown in Section 4, Respondent's fumigation certificate misstated both the method and location of treatment, creating a false appearance of compliance in advance of U.S. entry ([EX-K](#), [EX-M](#)).
2. **Foreseeable Barrier to Entry** – The mutually agreed decision to perform only 'normal fumigation / no AQIS' treatment ensured the shipment would not meet USDA/APHIS fumigation protocols, making rejection a foreseeable outcome ([EX-AD](#), see also [EX-D](#) for context).
3. **Procedural Trigger** – CBP's review of the ACI submissions revealed the absence of a valid USDA/APHIS import permit (a Complainant omission), prompting the formal hold that led to inspection ([EX-E](#), [EX-F](#), [EX-T](#), [EX-S](#)).
4. **Inspection Results** – The inspection confirmed the fumigation-protocol non-compliance and found live insect infestation, both barring lawful entry ([EX-N](#), [EX-O](#)).

5. **Proximate Cause** – While the permit omission contributed to the hold, the misrepresentations and substandard treatment were the primary and proximate causes of the shipment’s rejection, re-export, and associated losses ([EX-Q](#), [EX-R](#)).
 6. **Statutory Breach** – These combined factors meet the definition of unjust and unreasonable practices under 46 U.S.C. § 41102(c) ([EX-A through EX-AF](#)).
-

Section 6 – Damages

As a direct result of the conduct and outcomes set out in **Sections 4** and **5**, Complainant incurred substantial, well-documented losses. The categories below are supported by Exhibits **EX-31 through EX-37** in the [Losses & Damages](#), each with underlying receipts, statements, or valuation bases.

Two quantified loss scenarios are presented below — one assuming an orderly closure, and the other assuming the continuation of EcoBamboo’s operations — each supported by exhibits for verification. These scenarios reflect distinct, documented outcomes directly arising from the respondent’s conduct, and are provided to enable the Commission to consider appropriate relief under either operational path.

Scenario A – Permanent Business Disruption (Full operational collapse following the dispute)

Exhibit Ref.	Loss Category	Verified Amount
EX-31	Verified Out-of-Pocket Expenses	\$12,783.92
EX-32	Interest Charges Attributable to Disputed Transactions	\$1,251.59
EX-33	Product Sales Loss & Sample Disruption	\$83,580.00
EX-34	Operational Time Loss – Full Period	\$133,250.00
Total		\$230,865.51

Scenario B – Operational Continuity (Business recovery with re-order and mitigation efforts)

Exhibit Ref.	Loss Category	Verified Amount
EX-31	Verified Out-of-Pocket Expenses	\$12,783.92
EX-32	Interest Charges Attributable to Disputed Transactions	\$1,251.59
EX-33	Product Sales Loss & Sample Disruption	\$83,580.00
EX-34	Operational Time Loss – Disruption Period Only	\$26,650.00
EX-35	Re-Order Costs & Oversight Burden	\$21,750.00
Total		\$146,015.51

Additional Context:

- [EX-36](#) details how the missed market cycle extends the harm into 2026, even if operations resume.
 - [EX-37](#) consolidates these figures for regulatory review and underscores that all claimed losses are directly traceable to the shipment failure and its handling, avoiding duplication across scenarios.
 - Interest accrues monthly until resolution, and time-loss valuations are proportionate to actual disruption periods.
-

Section 7 – Request for Relief

Complainant respectfully requests that Respondent be required to answer the charges set forth in this Complaint; that, after hearing, the Commission order Respondent to cease and desist from the Shipping Act violations described herein and to implement lawful, reasonable, and transparent practices going forward; to pay Complainant **reparations for the unlawful conduct in the amount of \$230,865.51** — this amount reflects the full scope of damages incurred, **as explained in Scenario A in Section 6** —, together with interest in recognition not only of direct financial losses but of the disruption to Complainant’s business operations, professional standing, and means of livelihood; and that the Commission issue such other and further orders as it deems just and proper to restore fairness and prevent recurrence.

In the alternative, should the Commission determine that Complainant’s mitigation efforts warrant a reduced damages tier, Complainant respectfully requests reparations in the amount of **\$146,015.51** — this amount reflects the full scope of damages incurred, **as explained in Scenario B in Section 6** —, together with interest, the FMC filing fee, and such other relief as the Commission deems proper.

These valuations are also supported by the documentation and rationale **set forth in [EX-37](#)** of Losses and Damages.

Section 8 – Request for Oral Hearing

Complainant requests that any oral hearing on this matter be conducted by secure video conference or other remote means authorized by the Commission, in order to allow full participation without the need for travel to Washington, D.C.

[Back to Table of Contents](#)

Violation Matrix – FMC-Relevant Breaches

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

Compiled: Aug 29, 2025 — South Coffeyville, OK

All exhibits below cite violations falling within Federal Maritime Commission jurisdiction.

Exhibit	Violation Summary	Regulation(s) Cited & Full Text
EX-A	Did not verify USDA/APHIS import permit was in place before booking, despite noting requirement in quotation	46 U.S.C. § 41102(c) — A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to receiving, handling, storing, or delivering property. 46 CFR § 515.31(e) — Licensees must provide complete and accurate information on shipment requirements and necessary documents before booking.
EX-C	Holding out as full-service coordinator without documented scope	46 U.S.C. § 41102(c) — Prohibits unjust or unreasonable practices by regulated entities in connection with receiving, handling, storing, or delivering property.
EX-E	Booking accepted without verifying APHIS permit or full documentation checklist	46 CFR § 515.31(e) — NVOCCs must clearly communicate documentary requirements to shippers in advance of booking. 46 U.S.C. § 41102(c) — Mandates just and reasonable practices in service delivery.
EX-F	Continued omission of permit/sequence guidance during “under-name” export	46 CFR § 515.31(e) — Obligation to disclose essential documents and procedures.
EX-G	Quote opacity and shifting charges undermining reliance	46 CFR § 515.31(e) — Requires accurate, transparent quotations. 46 CFR Part 545 — Interpretive rule on demurrage and detention; billing must align with actual carrier terms.

Exhibit	Violation Summary	Regulation(s) Cited & Full Text
<u>EX-H</u>	Booking completed without final document checklist	46 CFR § 515.31(e) — Duty to confirm complete documentation prior to booking completion.
<u>EX-I</u>	Broker POA executed after vessel departure, creating risk of late ISF filing	46 U.S.C. § 41102(c) — Prohibits unreasonable service practices. 46 CFR § 515.31(e) — Requires timely and accurate information transfer.
<u>EX-O</u>	Admission sequencing/outsourcing caused certificate defects	46 U.S.C. § 41102(c) — Duty of care extends to third-party agents engaged by the licensee. 46 CFR § 515.31(e) — Forwarder must oversee agent compliance.
<u>EX-P</u>	Formal breach notice; cure ignored	46 U.S.C. § 41102(c) — Recognizes aggravation where breaches persist after notice.
<u>EX-Q</u>	Acceptance of phytosanitary certificate lacking APHIS-required treatment details and sequencing	46 U.S.C. § 41102(c) — Carrier practices must ensure documentary compliance with U.S. import law.
<u>EX-R</u>	Deflection despite documented sequencing failures	46 U.S.C. § 41102(c) — Prohibits deceptive or evasive handling of compliance responsibility.
<u>EX-T</u>	Consolidated demand citing permit and document failures	46 U.S.C. § 41102(c) — Covers cumulative breaches in documentary and procedural duties.
<u>EX-U</u>	Missed removal/re-export deadlines under FMC duty of care	46 U.S.C. § 41102(c) — Failure to act within regulatory timelines constitutes an unreasonable practice.
<u>EX-V</u>	CADRS escalation after non-cooperation	46 U.S.C. § 41102(c) — Procedural delays fall under the scope of just and reasonable practices. 46 CFR Part 502 — Provides FMC dispute resolution mechanisms.
<u>EX-W</u>	Liability denial pattern in face of contrary evidence	46 U.S.C. § 41102(c) — Repeated denial contrary to evidence breaches service fairness obligations.

Exhibit	Violation Summary	Regulation(s) Cited & Full Text
EX-X	Mixed messaging on mediation and authority	46 U.S.C. § 41102(c) — Transparency and accuracy in dispute handling are required. 46 CFR Part 502 — Governs FMC complaint and mediation processes.
EX-Y	Misrepresentation of CBP/AES rules	46 U.S.C. § 41102(c) — False or misleading procedural representations constitute an unreasonable practice.
EX-Z	Multiple deceptive statements in “final notice”	46 U.S.C. § 41102(c) — Outlaws unfair or deceptive practices. 46 CFR Part 545 — Requires billing transparency and accuracy.
EX-AB	Verbal assurance of liability acceptance without writing	46 CFR § 545.4(d) — All liability and cost arrangements must be accurately documented and not misleading.
EX-AC	Written confirmation of cost assumption for re-export/demurrage	46 U.S.C. § 41102(c) — Written undertakings must reflect actual responsibility; failure to act after such confirmation breaches reasonable practice standards.
EX-AE	Access denial to shipment records during active dispute	46 CFR § 515.31(e) — Licensees must provide shippers access to pertinent shipment records without undue delay or obstruction.
EX-AF	Closure & escalation addendum restating FMC-anchored breaches	46 CFR § 515.31 — Lists core documentary duties. 46 CFR § 515.32 — Details oversight responsibilities when using agents or third-party service providers.

[Back to Table of Contents](#)

Exhibit Index – Organized by Topic

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

Compiled: Aug 29, 2025 — South Coffeyville, OK

This index is organized by topic area to support efficient navigation of the evidentiary record. All exhibits retain their original numbering as referenced in the Violation Matrix and main Exhibit Index and narrative sections.

Within each topic, exhibits are listed in the order most relevant to that subject matter, allowing for rapid retrieval of materials on a specific issue without altering the underlying numerical sequence.

Section A – Core Regulatory & Procedural Documents

- [EX-A](#) – Quote Request to Ship4wd
- [EX-B](#) – USDA Inquiry: Lacey Act Applicability
- [EX-C](#) – Export License Coordination with Ship4wd
- [EX-E](#) – Booking Confirmation & Documentation Issues
- [EX-F](#) – Supplier Coordination & Permit Guidance
- [EX-G](#) – Final Cargo Readiness & Updated Pricing Request
- [EX-H](#) – Final Quote Acceptance & Booking Assignment
- [EX-I](#) – Customs Broker Onboarding via Clearit
- [EX-J](#) – POA Execution & Vessel Departure Confirmation
- [EX-V](#) – CADRS Escalation Initiated
- [EX-X](#) – CADRS Mediation Proposal & POA Request

Section B – Contractual, Transaction & Cost Responsibility

- [EX-G](#) – Quote Opacity and Shifting Charges
- [EX-AB](#) – Ms. Monica Halim (KCN) & Ship4wd Context
- [EX-AC](#) – Multiverse Written Confirmation of Cost Assumption

Section C – Fumigation Process & Related Evidence

- [EX-D](#) – Fumigation & Phytosanitary Planning
- [EX-K](#) – Certificate Draft Issues & B/L Conflicts
- [EX-L](#) – Certificate Signing Delays & Import Validity

- [EX-M](#) – Final Fumigation & Phytosanitary Certificates
 - [EX-AD](#) – Fumigation Process – WhatsApp Transcript & Procedural Context
-

Section D – USDA/CBP Enforcement & Entry Denial

- [EX-N](#) – USDA Infestation Notice & Export Mandate
 - [EX-O](#) – Ship4wd Admission of Certification Mishandling
 - [EX-P](#) – Demand for Breach Cure & Regulatory Redress
 - [EX-Q](#) – Consulate Verification of Certificate Authenticity
 - [EX-R](#) – CBP Hold & Ship4wd Deflection
 - [EX-S](#) – CBP Statement on USDA Permit Failure
 - [EX-T](#) – Final Formal Demand re-Entry Denial
 - [EX-U](#) – Delayed Response & Re-Export Coordination
 - [EX-W](#) – Liability Denial Amid Contrary Evidence
 - [EX-Y](#) – POA Dispute & CBP Misrepresentation
 - [EX-Z](#) – Clause-by-Clause Analysis of Ship4wd “Final Notice”
-

Section E – Access & Procedural Closure

- [EX-AE](#) – Dashboard Lockout During Active Dispute
- [EX-AF](#) – Index Closure & Escalation Addendum

[Back to Table of Contents](#)

Exhibit Index EX-A to EX-AF

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

Compiled: Aug 29, 2025 — South Coffeyville, OK

Exhibit numbers and page references correspond to the extended digest for regulatory review.

All exhibit links connect to exhibit EX-A through EX-AE annotation digest bookmarks for cross-reference.

Each exhibit (EX-A to EX-AF) is supported by a corresponding evidence file (EV-A to EV-AF) located in the /Evidence folder. Hyperlinks are active if folder structure is preserved.

Index 1: EX-A to EX-D

Exhibit	Title	Date(s)	Regulatory Anchor(s)	Alleged Breach	Evidence
EX-A	Quote request to Ship4wd	Nov 15, 2024	46U.S.C.§4102(c); 46 CFR § 515.31(e)	Presale omission of USDA/APHIS permit advisement	EV-A
EX-B	USDA inquiry regarding Lacey Act applicability	Nov 15, 2024	16 U.S.C. § 372(f); 7 CFR Part 357	Context of importer diligence	EV-B
EX-C	Export license coordination with Ship4wd	Feb 7–11, 2025	46 U.S.C.§ 41102(c)	Misleading service scope	EV-C
EX-D	Fumigation & phytosanitary planning	Jan 8–9, 2025	7 CFR § 305.5;	Procedural defect foreseeability	EV-D

[Back to Table of Contents](#)

Index 2: EX-E to EX-N

Exhibit	Title	Date(s)	Regulatory Anchor(s)	Alleged Breach	Evidence
EX-E	Booking confirmation & documentation issues	Mar 1–5, 2025	46 CFR § 515.31(e); 46 U.S.C. § 41102(c); 7 CFR § 319.40-3(b)	Unreasonable practice	EV-E
EX-F	Supplier coordination follow-up	Mar 4–6, 2025	46 CFR § 515.31(e); 7 CFR § 319.40-3(b)	Continued omission of permit guidance	EV-F
EX-G	Final cargo readiness & updated pricing request	Mar 10–13, 2025	46 CFR § 515.31(e); 46 CFR Part 545	Transparency failure	EV-G
EX-H	Final quote acceptance & booking assignment	Mar 17–23, 2025	46 CFR § 515.31(e); 19 CFR § 149.3; 7 CFR § 319.40-3(b)	Procedural unreasonableness	EV-H
EX-I	Customs broker onboarding via Clearit	Mar 28, 2025	19 CFR § 141.32; 19 CFR § 149.2(b); 46 CFR § 515.31(e)	Coordination failure	EV-I
EX-J	POA execution & vessel departure confirmation	Mar 24 – Apr 1, 2025	19 CFR § 149.2(b); 19 CFR § 141.32	Procedural negligence	EV-J
EX-K	Certificate draft issues & BoL conflicts	Mar 28 – Apr 30, 2025	Multiple CFR/USC anchors	Document control failure	EV-K
EX-L	Certificate signing delays & import validity	Apr 23 – May 2, 2025	7 CFR § 319.40-3(b); 19 CFR § 142.3	Unreasonable document handling	EV-L
EX-M	Final fumigation & phytosanitary certificates	Apr 8 & Apr 10, 2025	7 CFR § 305.5; 7 CFR § 319.40-3(b)	Inadmissible documentation	EV-M
EX-N	USDA infestation notice & export mandate	Jun 12–13, 2025	7 CFR § 319.40-3(b); 19 CFR Part 18	Harm and causation evidence	EV-N

[Back to Table of Contents](#)

Index 3: EX-O to EX-X

Exhibit	Title	Date(s)	Regulatory Anchor(s)	Alleged Breach	Evidence
EX-O	Ship4wd admission of certification mishandling	Jun 13–16, 2025	46 U.S.C. § 41102(c); 46 CFR § 515.31(e)	Unreasonable practice confirmation	EV-O
EX-P	Demand for breach cure & regulatory redress	Jun 18–19, 2025	46 U.S.C. § 41102(c); UCC § 2703	Aggravating factor	EV-P
EX-Q	Indonesian consulate verification of certificate authenticity	Jun 20–23, 2025	16 U.S.C. § 3372(f); 7 CFR § 319.40-3(b)	Admissibility vs authenticity	EV-Q
EX-R	CBP hold & Ship4wd deflection	Jun 24–25, 2025	46 U.S.C. § 41102(c)	Unfair/deceptive practice	EV-R
EX-S	CBP statement on USDA permit failure	Jun 27, 2025	Multiple CFR anchors	Doc omission	EV-S
EX-T	Final formal demand re-entry denial	Jun 30, 2025	Multiple CFR/USC anchors	Continued unreasonableness	EV-T
EX-U	Delayed response & reexport coordination	Jun 30 – Jul 3, 2025	19 CFR Part 18; 19 CFR Part 127	Failure to mitigate	EV-U
EX-V	CADRS escalation initiated	Jul 3, 2025	46 U.S.C. § 41102(c); 46 CFR Part 502	Procedural relevance	EV-V
EX-W	Liability denial & procedural deflection	Jun 25 – Jul 10, 2025	46 U.S.C. § 41102(c)	Unreasonable practice pattern	EV-W
EX-X	CADRS mediation proposal & POA request	Jul 10–23, 2025	46 CFR Part 502; 19 CFR § 141.32	Coordination defect	EV-X

[Back to Table of Contents](#)

Index 4: EY-Y to EX-AF

Exhibit	Title	Date(s)	Regulatory Anchor(s)	Alleged Breach	Evidence
EX-Y	POA dispute & CBP misrepresentation	Jul 23–24, 2025	19 CFR § 141.32; 15 CFR Part 30	Misrepresentation of authority	EV-Y
EX-Z	Clause-by-clause analysis of Ship4wd “Final Notice”	Jul 29, 2025	Multiple CFR anchors	Unfair/deceptive practice	EV-Z
EX-AA	Multiverse accepts refumigation costs	Jul 29, 2025	46 CFR Part 502	Preserves record	EV-AA
EX-AB	Ms. Monica Halim (KCN) & Ship4wd Context	Aug 5, 2025	Multiple CFR anchors	Procedural evasion	EV-AB
EX-AC	Multiverse written confirmation of cost assumption	Aug 5, 2025	19 CFR § 141.63; 46 U.S.C. § 41102(c)	Procedural risk	EV-AC
EX-AD	Fumigation decision and rebuttal correspondence	Mar 19 – Jun 23, 2025	Multiple CFR anchors	Non-compliance with treatment standards	EV-AD
EX-AE	Dashboard lockout during active dispute	Aug 11–12, 2025	46 CFR § 515.31(e)	Denial of shipment record access	EV-AE
EX-AF	Index closure & escalation addendum	Aug 27, 2025	Multiple CFR anchors	Permit lapse, procedural errors	-----

[Back to Table of Contents](#)

EXHIBIT ANNOTATION DIGEST — EX-A to EX-AF

Roger Waterloo dba EcoBamboo | Entry #8PY-20160957 | Container DFSU1191760

Compiled: Aug 29, 2025 — South Coffeyville, OK

This digest provides concise, regulator-focused annotation's for Exhibits EX-A through EX-AE, directly reflecting the chronology in the Exhibit Index.

EX-A | Correspondence with Ship4wd regarding quote request

Date: November 15, 2024

Type: Outbound and inbound email correspondence

Regulation:

- Lacey Act (16 U.S.C. §§ 3371–3378)
- CBP Import Requirements under 19 CFR § 12.140 (Lacey Act declaration) and 19 CFR § 141.0–141.113 (general import procedures)
- FMC Communication Protocols under 46 U.S.C. § 41102(c) (Shipping Act – just and reasonable practices) and 46 CFR § 545.4(d) (interpretive rule on detention and demurrage)

Tags: shipping quote, woven bamboo, Indonesia-USA trade, CBP bond, Lacey Act compliance, dock access, export documentation

Annotation:

Roger Waterloo formally requests shipping estimates from Ship4wd for a 20ft container of woven bamboo mats sourced from Purbalingga, Indonesia, bound either for Long Beach, CA (door-to-port) or Coffeyville, KS (door-to-door). He details shipment weight (2200–2650 lbs), valuation (\$2000), and acknowledges the absence of a CBP bond and AHC account. He affirms that the bamboo is commercially farmed and commits to consulting USDA on Lacey Act compliance. He also notes logistical constraints at the Coffeyville delivery site (no dock-high access). In response, Ship4wd provides preliminary instructions and confirms that export documentation from Indonesia should include a certificate of origin, commercial invoice, and packing list. Roger asserts his preference for direct communication over account registration and reiterates the request for a formal quote. The correspondence reflects proactive alignment with CBP import protocols and FMC standards for transparent freight engagement.

Linked Evidence: [EV-A](#)

[Back to Table of Contents](#)

EX-B | USDA Response Regarding Lacey Act Applicability

Date: November 15, 2024

Type: Email correspondence (inbound and outbound) with USDA APHIS

Regulation:

- Lacey Act Amendments of 2008 (16 U.S.C. §§ 3371–3378)
- CBP Import Requirements under 19 CFR § 12.140 (Lacey Act declaration) and 19 CFR § 141.0–141.113 (general import procedures)
- FMC Oversight under 46 U.S.C. § 41102(c) (Shipping Act – just and reasonable practices)

Tags: bamboo mats, HTS code, cultivated bamboo, Lacey Act exemption, phytosanitary treatment, APHIS inquiry

Annotation:

Roger Waterloo initiates a compliance inquiry to APHIS regarding Lacey Act requirements for importing bamboo mats from Purbalingga, Indonesia. He provides product specifications (300 mats, 16ft x 6ft), tentative HTS codes (4601.99.10 or 4601.21.00), and affirms commercial cultivation by local farmers. APHIS confirms that no Lacey Act declaration is required if the bamboo was cultivated for commercial use, but flags the need for a declaration if harvested from wild stands or if provenance is unclear. APHIS refers Roger to CBP for tariff code verification and notes that plant-sourced products must be legally harvested. The inquiry also seeks clarification on required phytosanitary treatments, which remains unresolved pending further inspection protocol guidance. The correspondence demonstrates proactive regulatory engagement and alignment with CBP and FMC procedural expectations.

Linked Evidence: [EV-B](#)

[Back to Table of Contents](#)

EX-C | Export License Coordination with Ship4wd

Date: February 7–11, 2025

Type: Email correspondence with Ship4wd, including customer service and presales team

Regulation:

- FMC Shipping Protocols under 46 U.S.C. § 41102(c) and 46 CFR § 545.4(d) (interpretive rule on detention and demurrage)
- CBP Import Procedures under 19 CFR § 141.0–141.113 (general import requirements)
- Indonesian Export Regulation (PEB declaration process)

Tags: export license, PEB declaration, Tanjung Priuk port Jakarta Indonesia, fumigation, cost estimate, residential delivery, supplier delay

Annotation:

Roger Waterloo corresponds with Ship4wd regarding the arrangements for export licensing and regulatory permissions (PEB) required for shipment from Jakarta, Indonesia. Initial queries highlight that the supplier lacks an export license and requests clarification on whether Ship4wd's agent can handle the PEB process. Ship4wd confirms they can assist, pending agent verification. Roger provides a shipping timeline update, noting the expected readiness of the container in Tanjung Priuk within two weeks. He requests a complete cost estimate—including export licensing and fumigation—for both delivery scenarios: Long Beach, CA and residential delivery in Coffeyville, KS. The discussion reflects active procedural planning and aims to avoid unexpected charges, emphasizing reliance on Ship4wd for comprehensive freight coordination. The correspondence aligns with FMC's interpretive guidance on transparent billing and CBP's procedural standards for import readiness.

Linked Evidence: [EV-C](#)

[Back to Table of Contents](#)

EX-D | Fumigation and Phytosanitary Coordination with Ship4wd

Date: January 8–9, 2025

Type: Email correspondence between Roger Waterloo and Ship4wd presales team

Regulation:

- CBP Import Requirements under 19 CFR § 12.140 (Lacey Act declaration), 19 CFR § 141.0–141.113 (general import procedures), and 7 CFR § 319.40–4 (phytosanitary treatment and wood product import standards)
- FMC Shipping Practices under 46 U.S.C. § 41102(c) (Shipping Act – just and reasonable practices)
- Indonesian Export Procedures including PEB filing and fumigation certification

Tags: fumigation, phytosanitary certificate, container condition, loading site, agent coordination, supplier limitations, freight execution

Annotation:

Roger Waterloo engages Ship4wd to coordinate fumigation and phytosanitary certification for his upcoming shipment of woven bamboo rolls from Jakarta, Indonesia. He outlines that the supplier lacks a depot or warehouse, complicating on-site fumigation—yet emphasizes that certification must occur post-fumigation and may take up to seven working days. Ship4wd confirms availability of an agent in Jakarta and commits to formulating an execution plan. Roger calculates container capacity based on product dimensions (200×40×40 cm per roll), confirming that 70 rolls will fit in a standard 20ft container, and estimates a shipment weight of ~250 kg. He

also specifies container condition requirements for fumigation (grade B or better, clean, undamaged) and raises timing concerns for certification scheduling. The correspondence illustrates preemptive regulatory planning aligned with CBP phytosanitary expectations and FMC guidelines for transparent logistics coordination.

Linked Evidence: [EV-D](#)

[Back to Table of Contents](#)

EX-E | Booking Confirmation and Export Coordination with Ship4wd

Date: March 1–5, 2025

Type: Email correspondence between EcoBamboo (Roger Waterloo) and Ship4wd operations and presales teams

Regulation:

- CBP Import Protocols – 19 CFR § 141.0–141.113 (entry procedures and documentation), 19 CFR § 12.140 (Lacey Act compliance), 7 CFR § 319.40–4 (phytosanitary treatment standards for bamboo products)
- FMC Conduct Rules – 46 U.S.C. § 41102(c), 46 CFR § 515.31(e) (NVOCC service disclosure and booking contract transparency)
- Indonesian Export Licensing Requirements – Exporter compliance involving PEB, NPWP, NIB, and export permit delegation

Tags: booking reference zXJ0Zldakx, bamboo poles and matting, export license, payment issue, shipment documentation, fumigation request, phytosanitary coordination, APHIS permit ambiguity, POA inconsistency

Annotation:

EX-E documents Roger Waterloo’s booking of a full-container-load (FCL) shipment with Ship4wd, originating in Jakarta and destined for South Coffeyville, Oklahoma. The declared cargo includes bamboo matting and poles totaling 3850 kg. Roger confirms service requirements—export/import clearance, fumigation, and phytosanitary certification—and shares relevant pickup logistics and delivery constraints, including a non-commercial drop-off requiring extended unloading.

Roger identifies a payment issue stemming from a mismatch between his account registered as "EcoBamboo" and payment instruments held under his personal name, proposing to revise registration details. He asserts that he will arrange the APHIS certificate and Lacey Act declaration but requires completion of fumigation and phytosanitary certification to proceed.

Ship4wd confirms service obligations but introduces ambiguity in their declaration that “it is the customer's responsibility to provide all relevant documents” without listing the specific documents required. Critically, despite knowing that bamboo poles are subject to USDA/APHIS import restrictions, Ship4wd fails to confirm or advise Roger to secure an APHIS Import Permit—an omission that later led to entry denial, as documented in EX-P through EX-T.

Further correspondence clarifies that the Indonesian seller will not apply for an export license and that Ship4wd must arrange for one through their agent. Roger notes that he cannot apply for the license himself and underscores that such coordination was discussed explicitly in prior calls and emails. Throughout the exchange, Ship4wd fails to issue a formal booking contract, violating transparency obligations under FMC regulations and introducing ambiguity regarding scope and liability.

The exhibit also flags a POA asymmetry—Ship4wd requested Roger sign a POA for Clearit USA ([EX-I](#)), but did not provide or execute a corresponding freight forwarder POA for their own role, undermining role clarity and accountability under FMC oversight provisions.

This entry establishes a foundational record of booking terms, procedural gaps, and documentation ambiguity that contributed to later regulatory failures.

Linked Evidence: [EV-E](#)

[Back to Table of Contents](#)

EX-F | Export Licensing, Phytosanitary Coordination, and Regulatory Oversight with Ship4wd

Date: March 4–6, 2025

Type: Email correspondence between EcoBamboo (Roger Waterloo) and Ship4wd operations and presales teams

Regulation:

- CBP Import Protocols – 19 CFR § 141.0–141.113 (general import procedures), 19 CFR § 12.140 (Lacey Act declaration), 7 CFR § 319.40–4 (phytosanitary treatment and wood product requirements)
- USDA/APHIS Import Authorization – PQ Form 587 permit requirements for plant commodities under 7 CFR Part 319 (PPQ 587 permit)
- FMC Shipping Conduct Standards – 46 U.S.C. § 41102(c) (just and reasonable practices), 46 CFR § 515.31(e) (NVOCC documentation obligations)
- Indonesian Export Licensing Protocol – PEB, NPWP, NIB, and use of under-name entities registered for phytosanitary issuance

Tags: export license, phytosanitary certificate, APHIS permit omission, cargo drying timeline, documentation coordination, Sulawesi vs Jakarta supplier error, booking correction, under-name workaround, payment method restriction

Annotation:

EX-F captures follow-up coordination between Roger Waterloo and Ship4wd regarding the export license and phytosanitary certification for a bamboo shipment. Ship4wd confirms that the supplier lacks an export license and proposes using an “under-name” company, contingent on that entity’s registration for phytosanitary approval. Roger affirms this route and asks whether the documentation is now secured and the cargo ready post-fumigation. Ship4wd responds that the raw bamboo must be dried, delaying readiness by 7–8 days.

Roger also requests clarification on credit line eligibility, which Ship4wd declines—redirecting him to ACH or credit card payment options. He flags a booking inaccuracy: the pickup contact was incorrectly listed as a Sulawesi seller rather than the actual Jakarta supplier. He supplies the correct contact information (Mr. Rizal near Tanjung Priuk) and urges direct coordination to prevent delays.

Critically, despite confirming the bamboo cargo and explicitly discussing export documentation, Ship4wd does not mention the APHIS import permit at any point, nor do they advise Roger to apply for it. Given the known USDA restrictions on bamboo product entry, this omission contravenes their duty under FMC 46 CFR § 515.31(e) to disclose essential documentation obligations prior to export. Their blanket statement that “all relevant documents are the customer’s responsibility” fails to meet transparency standards and creates conditions for regulatory non-compliance.

This entry highlights Ship4wd’s incomplete handling of documentation responsibilities and underscores the impact of their advisory gap—contributing directly to the shipment complications documented in EX-P through EX-T. It also reflects Roger’s strategic diligence in addressing export procedural gaps and miscommunication while maintaining alignment with phytosanitary and FMC standards.

Linked Evidence: [EV-F](#)

[Back to Table of Contents](#)

EX-G | Final Cargo Readiness and Updated Quote Request to Ship4wd

Date: March 10–13, 2025

Type: Email correspondence between Roger Waterloo and Ship4wd presales team

Regulation:

- FMC Pricing Conduct under 46 U.S.C. § 41102(c) (just and reasonable practices), 46 CFR § 515.31(e) (quote transparency)
- CBP Pre-entry Declarations under 19 CFR § 149.3 (ISF data elements), 19 CFR § 141.61 (customs entry), and 19 CFR § 10.1(a) (duty and tax assessment)
- Indonesian Export Formalities involving documentation, export license under-name arrangements, and pre-shipment phytosanitary preparation

Tags: pricing transparency, export license, cargo drying, quote breakdown, ocean freight comparison, shipment readiness, domestic delivery, FMC fairness

Annotation:

Roger Waterloo confirms cargo drying completion and signals readiness for pickup. He emphasizes the business expectation of pricing clarity and critiques past quote handling—particularly holding the February 28 quote without consent, despite freight rate fluctuations. He acknowledges Ship4wd’s effective coordination efforts, including arranging an under-name export license, but presses for fully itemized and current pricing in contrast to competing quotes received during vendor evaluation.

Roger draws attention to a \$3,700 disparity in pickup and ocean freight costs, referencing comparative data and expressing concern over quote validity given the timing. He challenges past miscommunication by invoking transparency standards, admitting his own misinterpretation (“arrange”) while pointing out Ship4wd’s inaccurate recollection of prior export license discussions. He requests a revised, detailed quote inclusive of both Indonesia-origin charges and U.S. destination fees—spanning export license, phytosanitary inspection, fumigation, customs handling, ocean freight, domestic inland delivery, and port-side surcharges.

The exchange highlights Roger’s strategic approach to vendor selection, insistence on FMC-aligned quote fairness, and future shipment planning (minimum one per month), reinforcing his emphasis on credibility restoration and operational scalability for EcoBamboo.

Linked Evidence: [EV-G](#)

[Back to Table of Contents](#)

EX-H | Final Quote Confirmation, Payment, and Booking Update from Ship4wd

Date: March 17–23, 2025

Type: Email correspondence between EcoBamboo (Roger Waterloo) and Ship4wd presales and operations teams

Regulation:

- FMC Quote Conduct and Booking Finalization – 46 U.S.C. § 41102(c), 46 CFR § 515.31(e) (quote accuracy, documentation guidance, service transparency)
- CBP Entry and Payment Protocols – 19 CFR § 141.61 (customs entry requirements), 19 CFR § 10.1(a) (duty liability and classification accuracy)
- APHIS Import Compliance – 7 CFR § 319.40–3(b), PPQ Form 587 (USDA import permit obligations)
- Indonesian Export Completion – under-name license issuance, phytosanitary certification, PEB declaration finalization

Tags: quote finalization, cost breakdown, invoice segmentation, booking confirmation, drayage ambiguity, import documentation lapse, shipment transparency, monthly volume forecast

Annotation:

EX-H documents Roger Waterloo's strategic finalization of a shipment/order ID: 0H16V7f2bZ quote totaling \$8,155 via Ship4wd, covering door-to-door logistics from Jakarta, Indonesia to Coffeyville, KS. Roger requests the quote to be restructured into three invoices of \$1,500, \$755, and \$5,900 to enable smoother ACH processing. The quote includes granular cost elements: origin trucking (\$275), ocean freight and domestic delivery (\$6,625), customs clearance (\$200), under-name export licensing (\$200), fumigation and inspection (\$250), residential delivery (\$250), and applicable U.S. customs entry fees.

Roger probes whether drayage is embedded in the quote and reiterates his stance on transparency—not out of suspicion but to enable cross-checking vendor feedback and fortify procedural clarity. Ship4wd confirms payment receipt and assigns the shipment to IRENES REWARD, voyage 514N, with an estimated arrival of May 29, 2025.

Crucially, despite quote approval and booking, Ship4wd fails to conduct a final document checklist confirmation, omitting reference to critical pre-shipment and import compliance materials. Absent from this exchange are:

- APHIS import permit (PPQ Form 587) for bamboo pole clearance
- Phytosanitary certification details aligned with U.S. plant health protocols
- PEB and under-name licensing evidence from Indonesia's export framework
- Packing list and commercial invoice validation under CBP regulations (19 CFR § 141.61)

This procedural silence marks a non-compliance with FMC guidance under 46 CFR § 515.31(e)—specifically, the forwarder's duty to ensure transparent and complete service instructions, particularly for biologically regulated commodities. The lapse represents a missed opportunity to proactively identify documentation gaps that later catalyze regulatory delays (see [EX-P through EX-T](#)).

EX-H therefore underscores Roger’s diligence in payment structuring and vendor accountability, juxtaposed with Ship4wd’s fragmented execution of its advisory responsibilities. It illustrates the systemic risk of quote completion without documentation assurance, and strengthens the narrative of procedural unevenness throughout the dispute timeline.

Linked Evidence: [EV-H](#)

[Back to Table of Contents](#)

EX-I | Customs Broker Onboarding and Power of Attorney Request via Ship4wd and Clearit USA

Date: March 28, 2025

Type: Email correspondence and onboarding notices between EcoBamboo (Roger Waterloo), Ship4wd, and Clearit USA

Regulation:

- CBP Broker Protocols and ISF Requirements – 19 CFR § 149.3 (ISF data elements), 19 CFR § 141.32 (power of attorney execution for customs brokers), 19 CFR § 141.46 (broker communications obligations)
- FMC Conduct Rules – 46 U.S.C. § 41102(c) (just and reasonable practices in service delivery, including documentation guidance and transparency)

Tags: customs clearance, ISF filing, broker onboarding, power of attorney, registration protocol, Clearit USA, carrier ETD, APHIS permit omission, documentation gaps, procedural compliance

Annotation:

EX-I captures a pivotal procedural transition, as Ship4wd confirms Clearit USA as the designated customs broker for Roger Waterloo’s shipment (Booking 0H16V7f2bZ), scheduled on IRENES REWARD, ETD April 1. Clearit’s email prompts Roger to complete digital registration and execute a Power of Attorney (POA)—a prerequisite for CBP representation and ISF filing. Ship4wd echoes this urgency in separate correspondence, referencing prior coordination with internal team members including Santosh and Neeraja Nair.

Roger also receives confirmation of the previously segmented payment arrangement (\$5,900, \$1,500, \$755), originally structured in EX-H to align with ACH transfer capabilities. This signals procedural continuity between financial settlement and customs onboarding.

However, neither Clearit nor Ship4wd outlines the full scope of required import documentation. There is:

- No mention of the APHIS import permit (PPQ Form 587), mandatory for bamboo pole shipments under USDA plant product regulations

- No clarification of ISF data element obligations (see 19 CFR § 149.3), despite referencing the ISF filing in vague terms
- No reference to packing lists, commercial invoices, or phytosanitary certificates, which are essential for CBP entry under 19 CFR § 141.61 and for regulated wood products under 7 CFR § 319.40

This lack of checklist guidance, especially from the broker tasked with compliance duties, reflects a failure to fulfill FMC 46 CFR § 515.31(e) obligations for transparent, just, and reasonable practices. Clearit’s onboarding email references ease and efficiency but overlooks the substantive regulatory expectations of importing USDA-regulated commodities—underscoring a pattern of procedural shallowness previously seen in EX-H.

By contrast, Roger’s attention to payment timing and proactive registration reflect strategic diligence, while the silence from Clearit and Ship4wd places EcoBamboo at risk for delayed ISF filing, inspection penalties, and bond exposure. This annotation bolsters the narrative of service provider inadequacy in pre-import readiness, reinforcing the digest’s purpose: documenting procedural oversights that impact regulatory integrity.

Linked Evidence: [EV-I](#)

[Back to Table of Contents](#)

EX-J | Vessel Departure Confirmation and Customs Broker POA Verification via Ship4wd and Clearit USA

Date: March 24 – April 1, 2025

Type: Email correspondence confirming shipment progress and customs onboarding

Regulation:

- FMC Conduct Standards – 46 U.S.C. § 41102(c) (freight forwarder obligation for just and transparent engagement)
- CBP Broker Protocols – 19 CFR § 141.32 (POA requirements for customs brokers), 19 CFR § 149.2(b) (ISF filing timeline—no later than 24 hours prior to vessel departure), 19 CFR § 141.46 (communication standards and disclosure responsibility)
- APHIS Import Protocols – USDA pre-clearance requirements for regulated plant commodities

Tags: POA asymmetry, ISF timing breach, customs authority, Clearit onboarding, forwarder duty of care, APHIS documentation omission, misleading messaging, booking confirmation

Annotation:

EX-J documents Ship4wd’s confirmation that IRENES REWARD departed Jakarta on March 30, 2025. Clearit USA’s email verifies Roger Waterloo’s Power of Attorney one day later on March 31—after vessel departure—creating a potential breach of the CBP Importer Security Filing (ISF) rule under 19 CFR § 149.2(b), which requires ISF data submission no less than 24 hours before the vessel departs the foreign port.

In EX-I, Clearit advised Roger to sign the POA “as soon as possible,” but this phrasing lacked urgency or regulatory context. The onboarding campaign email dated March 31 compounds the issue by stating: “What documents do I need? Good news—we handle it all for you!”

This language—marketed as a reassurance—effectively conveyed that Clearit had full procedural control, leading Roger to reasonably believe that documentation responsibilities (including USDA APHIS permit acquisition) were being handled professionally and completely. This created a false sense of security, temporarily overriding Roger’s otherwise proactive diligence in document preparation and compliance planning.

No forwarder POA or booking contract was issued by Ship4wd throughout this period, continuing the asymmetry in agency delegation. Ship4wd’s failure to enforce proper documentation handoffs and Clearit’s misleading onboarding language signal a broader deficiency in regulatory coordination and duty-of-care obligations—violating FMC 46 U.S.C. § 41102(c) standards for transparency and procedural integrity.

Roger’s conduct throughout remains consistent with good-faith cooperation and timely engagement. The procedural delays and regulatory exposure documented here stem from service provider neglect in onboarding prioritization and compliance messaging.

Linked Evidence: [EV-J](#)

[Back to Table of Contents](#)

EX-K | Documentation Request, Certificate Drafting Burden, and AMS/ISF Oversight for FCL Shipment 0H16V7f2bZ

Date: March 28 – April 30, 2025

Type: Email correspondence regarding certificate timing, BoL delivery, and customs obligation negligence

Regulation:

- APHIS Quarantine & Treatment Protocols – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (treatment order and pest clearance verification)

- Lacey Act Declaration – 16 U.S.C. § 3372(f) (origin legality and documentation traceability)
- CBP Entry Documentation – 19 CFR § 141.0–141.113 (BoL availability for cargo release)
- CBP ISF Protocol – 19 CFR § 149.2(b) (filing at least 24 hours before vessel loading)
- FMC Conduct Rule – 46 U.S.C. § 41102(c) (carrier diligence and communication standards)

Tags: AMS/ISF customs trigger, documentation outsourcing, certificate inconsistency, APHIS failure, Lacey Act risk, B/L delay, container dispute, procedural neglect

Annotation:

EX-K chronicles procedural failures across three fronts for shipment 0H16V7f2bZ: certificate chronology, customs readiness, and document control.

Roger Waterloo formally requested fumigation and phytosanitary certificates before shipment departure—recognizing the importance of proper sequencing under APHIS regulations (7 CFR § 319.40-3(b)). Ship4wd responded with drafts dated April 8, showing a reversed treatment timeline (phytosanitary inspection on March 21, 2024, fumigation on March 24, 2025). Phytosanitary draft dated March 21, 2024—over a year prior to shipment—suggests recycled or mis-issued documentation, undermining inspection credibility and procedural integrity. This invalidates pest clearance certification and undermines USDA validation requirements.

Rather than resolving the issue, Ship4wd asked Roger to complete the drafts himself, misassigning responsibility and jeopardizing EcoBamboo’s regulatory posture. When final certificates arrive in EX-M, treatment dates are omitted, further eroding Lacey Act compliance (16 U.S.C. § 3372(f)) and CBP traceability.

The issue intensifies with the Hapag-Lloyd House Bill of Lading, which includes a clear customs directive: “Direct: USA (AMS/ISF)”

This note signals mandatory AMS and ISF filings prior to vessel loading, as required under 19 CFR § 149.2(b). Ship4wd never acknowledged this designation, nor did they coordinate filings or ensure POA authority was granted before the March 30 departure. Their silence on this point underscores systemic neglect, potentially triggering:

- ISF penalties (\$5,000 per violation)
- Cargo holds
- Delayed CBP and USDA entry clearance

Document delivery issues compound the lapse: the Bill of Lading arrives April 30, one full month after departure, violating CBP expectations under 19 CFR § 141.0–141.113. Simultaneously, Ship4wd misstates the container size in the B/L (40ft HQ), despite Roger’s 20ft request. Internal

emails show finger-pointing and confusion—never resolved with booking documentation or a verified correction.

Throughout, Roger’s outreach remains consistent, proactive, and detail-oriented. Ship4wd’s fragmented coordination, dismissal of AMS/ISF responsibilities, and improper documentation delegation reflect deep failures in meeting carrier duties under FMC 46 U.S.C. § 41102(c).

Linked Evidence: [EV-K](#)

[Back to Table of Contents](#)

EX-L | Fumigation and Phytosanitary Certificate Clarification Exchange

Date: April 23 – May 2, 2025

Type: Email correspondence confirming discrepancies and delayed issuance of signed treatment documents

Regulation:

- APHIS Import Protocols – 7 CFR § 319.40-3 (plant pest quarantine and treatment certification)
- Lacey Act Documentation – 16 U.S.C. § 3372(f)(1) (verification of legal sourcing and treatment chronology)
- CBP Entry Compliance – 19 CFR § 142.3 (entry documentation required at time of release)
- FMC Carrier Conduct – 46 CFR § 515.31(c) (timely and responsible document provision by licensed forwarders)

Tags: signed certificates, draft discrepancies, phytosanitary certificate, fumigation certificate, APHIS compliance, import treatment validation, AMS/ISF oversight, container documentation, EcoBamboo diligence

Annotation:

EX-L documents Roger Waterloo’s discovery on April 30 that the previously provided fumigation and phytosanitary certificates for shipment 0H16V7f2bZ were unsigned drafts, lacking legal validity under APHIS import protocols. Roger promptly contacts Ship4wd to request signed originals. Ship4wd responds on May 2 with final documents—thirty-two days after vessel loading (March 30) and over four weeks post-ETD (April 1).

This delay violates USDA requirements under **7 CFR § 319.40-3**, which mandate signed treatment certificates **before** entry submission to confirm pest mitigation. The **Lacey Act (16 U.S.C. § 3372(f)(1))** likewise requires treatment origin and legality to be verifiable at

declaration, not after. Missing signatures and treatment chronology in the drafts undermine **APHIS** and **CBP** compliance, risking rejection under **19 CFR § 142.3**.

Ship4wd failed to secure these certificates during shipment finalization, only requesting them from the agent **after** Roger identified the omission—per their own email. This reactive approach conflicts with the preventative diligence required under **FMC Rule 46 CFR § 515.31(c)**, and the need for importer prompting to meet core documentation duties calls into question their procedural control and compliance culture.

Roger’s methodical audit and timely intervention reinforce EcoBamboo’s commitment to regulatory integrity. EX-L highlights a recurring failure pattern: Ship4wd’s documentation lapses are consistently exposed and resolved through importer oversight, underscoring violations of forwarder conduct and supporting assertions of negligence in CBP filings and regulatory correspondence.

Linked Evidence: [EV-L](#)

[Back to Table of Contents](#)

EX-M | Final Fumigation & Phytosanitary Certificates for FCL Shipment 0H16V7f2bZ

Date Issued: April 8 & April 10, 2025

Type: Treatment and health certificate documents submitted for entry

Regulation:

- APHIS Import Requirements – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (mandatory treatment certification and phytosanitary validation)
- CBP Supporting Documents – 19 CFR § 142.3(a) (entry release documents)
- Lacey Act Declaration – 16 U.S.C. § 3372(f) (traceability and treatment source documentation)
- FMC Conduct Rule – 46 CFR § 515.31(c) (accuracy and accountability in document transfer)

Tags: non-compliant certificates, APHIS treatment validation, phytosanitary unsigned, methyl bromide, procedural discrepancy, EcoBamboo risk

Annotation:

The fumigation certificate, issued April 8 by PT. TIGA PERMATA SELARAS specifies methyl bromide treatment referencing the Australian standard but omits APHIS-required details under 7 CFR § 305.5, whose treatment specifications under 7 CFR § 305.5 are both distinct and jurisdictionally binding. The certificate does not mention USDA alignment, and its framing introduces risk if presumed sufficient for pest clearance.

The phytosanitary certificate, issued April 10 by the Indonesian Quarantine Authority, bears only an official stamp with the officer’s printed name but lacks a physical or digital signature—a requirement under APHIS protocols for certificate authentication. The absence of a signature casts doubt on its admissibility for entry review under 7 CFR § 319 and may impede Lacey Act declaration due to insufficient verification of plant origin and treatment.

These omissions underscore systemic procedural failure by Ship4wd and affiliated agents, who did not verify that final certificates met importing country specifications. Roger’s identification of these issues—and refusal to treat unsigned/stamped-only documents as compliant—demonstrates strict regulatory stewardship, and reinforces EcoBamboo’s posture of proactive integrity in documentation.

Linked Evidence: [EV-M](#)

[Back to Table of Contents](#)

EX-N | USDA Rejection and Immediate Export Order for Container DFSU1191760

Date: June 12–13, 2025

Type: Regulatory notification and email correspondence from CBP and Clearit USA

Regulation:

- APHIS Quarantine Enforcement – 7 CFR § 319.40-3(b) (pest control treatment protocols)
- CBP Entry Rejection and Export Directive – 19 CFR § 123.41(b), 19 CFR § 141.0–141.113 (entry denial and IE filing protocol)
- Lacey Act Compliance Exposure – 16 U.S.C. § 3372(f) (import legality assurance, pest-free certification)
- FMC Conduct Rules – 46 U.S.C. § 41102(c) (carrier procedural integrity and regulatory transparency)

Tags: USDA rejection, CBP export directive, pest infestation, denied entry, IE Type 63 filing, Clearit coordination failure, APHIS enforcement, fumigation infeasibility, data inconsistency, EcoBamboo reputational exposure

Annotation:

USDA Emergency Action Notification issued on June 12 formally identifies pest infestation in container DFSU1191760 under B/L HLCU-JK1250331936. CBP mandates immediate export under IE Type 63 protocol, prohibiting discharge, treatment, or entry into U.S. soil. The USDA officer affirms fumigation infeasibility due to spacing restrictions, triggering enforcement under 7 CFR § 319.40-3(b) and 19 CFR § 123.41(b). The directive is non-negotiable and requires re-export within 72 hours.

Despite this, Clearit forwards USDA fumigator references and implies treatment remains viable, contradicting the USDA-issued EAN. This reaction deviates from the broker's role once IE protocol is activated and risks procedural escalation under CBP safeguards. Furthermore, the EAN (serial no. 658503) references incorrect importer and consignee data submitted via EAN document originally transmitted by Ship4wd—undermining regulatory traceability and document integrity required under 16 U.S.C. § 3372(f).

The case highlights compounded errors previously documented in EX-K and EX-M, revealing persistent non-compliance across remediation chronology, certificate formatting, and regulatory interpretation. Clearit's disregard of CBP/USDA directives and promotion of a prohibited treatment option may constitute procedural misrepresentation under FMC 46 U.S.C. § 41102(c), reinforcing concerns of conduct and document control negligence.

EcoBamboo's stance—evidenced by Roger's rapid coordination and rejection acknowledgment—continues to reflect procedural rigor, factual accuracy, and intent to resolve through compliance. The annotation underscores a critical inflection point where agent error directly clashes with federal quarantine enforcement.

Linked Evidence: [EV-N](#)

[Back to Table of Contents](#)

EX-O | Ship4wd Admission of Procedural Delays and Incorrect Certification Handling

Date: June 13–16, 2025

Type: Email correspondence regarding certification sequencing, third-party agent coordination, and fumigation cost recovery

Regulation:

- APHIS Treatment and Inspection Protocols – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (chronological treatment and pest mitigation standards)
- CBP Import Eligibility and Cost Declaration – 19 CFR § 141.0–141.113 (entry documentation and regulatory timing)
- Lacey Act Declaration Assurance – 16 U.S.C. § 3372(f) (pest-free import declaration and certificate alignment)
- FMC Conduct Rules – 46 U.S.C. § 41102(c) (carrier accountability for third-party service failure)

Tags: Ship4wd admission, certification delay, treatment reversal, third-party agent coordination, incorrect consignee data, fumigation charges, EcoBamboo dispute, CBP rejection

Annotation:

Between June 13 and 16, Ship4wd issues a response to Roger’s inquiry into the legitimacy of fumigation and inspection procedures for shipment 0H16V7f2bZ. Their email confirms that inspection was conducted prior to fumigation, contradicting APHIS guidelines under 7 CFR § 319.40-3(b). Despite acknowledging a 7–8 day delay due to drying needs for raw bamboo, the fumigation date remains inconsistent with prior certificates—further degrading regulatory credibility.

Ship4wd also admits that the phytosanitary process was outsourced to an agent, due to the supplier lacking an export license. Although this move aimed to facilitate export, it triggered a documentation gap: the certificate drafts previously submitted in EX-K and EX-M not only reversed inspection and treatment chronology but also featured incorrect consignee data in the EAN document—a document Ship4wd distributed without correction or acknowledgment. This oversight links directly to FMC conduct breaches under 46 U.S.C. § 41102(c) for failing to ensure third-party procedural integrity.

In response to CBP’s rejection and USDA’s prohibition on remediation (as detailed in EX-N), Ship4wd offers a cost estimate for post-arrival fumigation—including charges for safeguarding, chemical treatment, and labor setup—despite the shipment’s ineligibility for treatment under USDA spacing guidelines. The email does not explain how the container became infested after alleged treatment, nor does it clarify procedural lapses that led to regulatory failure.

Roger’s reply reinforces EcoBamboo’s position on legal liability and CBP compliance. His reference to altered documentation formats and insistence on independent oversight reflects continued diligence and an unwillingness to absorb the costs of procedural failure. The dispute remains centered on accountability for falsified certification formatting, incorrect consignee data, and improper sequencing—all managed under Ship4wd’s booking and coordination scope.

Linked Evidence: [EV-O](#)

[Back to Table of Contents](#)

EX-P | Official Demand for Resolution Following CBP Infestation Finding and Documentation Failure

Date: June 18–19, 2025

Type: Email exchange and certified demand letter between EcoBamboo (Roger Waterloo) and Ship4wd representatives

Regulation:

- APHIS Quarantine and Fumigation Protocols – 7 CFR § 319.40-3(b) (certified pest mitigation and treatment sequencing)

- CBP Entry and Export Control – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b) (entry denial and IE protocol for infested cargo)
- Lacey Act Declaration Integrity – 16 U.S.C. § 3372(f) (import legality and pest-free assurance)
- FMC Conduct Rules – 46 U.S.C. § 41102(c) (carrier procedural diligence and third-party oversight)
- Uniform Commercial Code (UCC) – § 2-615, § 2-703 (commercial breach and demand for cure)

Tags: CBP rejection, USDA directive, demand for resolution, breach notification, certified complaint, fumigation failure, carrier accountability, shipment infestation, UCC contract remedy, EcoBamboo restitution

Annotation: EX-P documents EcoBamboo’s formal escalation from regulatory inquiry to commercial breach notification following CBP’s pest infestation determination for container DFSU1191760. In correspondence dated June 18–19, Roger Waterloo issues a certified demand for resolution, emphasizing that he did not initiate third-party treatment, inspection, or certificate coordination. He places responsibility on Ship4wd for procedural integrity, documentation accuracy, and regulatory compliance.

Ship4wd’s email replies confirm that origin-based fumigation was conducted and all paperwork was prepared in accordance with requirements. However, they offer no explanation for how the container became infested, nor do they acknowledge the contradiction inherent in their position—that certified treatment purportedly took place, yet the USDA and CBP jointly declared the cargo unfit for entry due to actionable pests. Their failure to investigate, speculate, or propose remedial tracing falls short of regulatory expectation under 7 CFR § 319.40-3(b) and is procedurally negligent under FMC 46 U.S.C. § 41102(c).

The demand letter issued by Roger outlines a binary outcome: either successful delivery after corrective action or full reimbursement for financial losses, penalties, and administrative costs. His reference to consumer protection complaint channels and future legal proceedings underscores the commercial severity of the breach and invokes rights under UCC § 2-703. Ship4wd’s continued deflection and refusal to engage with the root cause—how infestation occurred despite declared compliance—exemplifies avoidance rather than accountability.

EX-P builds on prior entries (EX-K to EX-O) and marks a strategic turning point in EcoBamboo’s dispute posture: from factual annotation to formal demand for commercial cure. The annotation reinforces EcoBamboo’s diligence and procedural distinction while establishing grounds for regulatory and contractual remedy.

Linked Evidence: [EV-P](#)

[Back to Table of Contents](#)

EX-Q | Indonesian Consulate Verification of Phytosanitary Certificate Validity

Date: June 20–23, 2025

Type: Email correspondence between EcoBamboo (Roger Waterloo) and the Consulate General of Indonesia in Houston

Regulation:

- APHIS Treatment Validation Standards – 7 CFR § 319.40-3(b) (treatment chronology and pest mitigation)
- Lacey Act Import Legitimacy – 16 U.S.C. § 3372(f) (legal origin and pest-free certification under U.S. law)
- CBP Entry Documentation Control – 19 CFR § 141.0–141.113 (entry admissibility and regulatory traceability)
- FMC Conduct Oversight – 46 U.S.C. § 41102(c) (carrier obligation to ensure document accuracy and procedural fairness)

Tags: phytosanitary certificate verification, consular outreach, serial number validation, APHIS non-recognition, regulatory misalignment, Ship4wd documentation failure, EcoBamboo due diligence

Annotation:

On June 20, Roger Waterloo contacts the Indonesian Consulate in Houston to verify the origin and authenticity of phytosanitary certificate No. 2025-T1.0-3100.0-K.T.1-003817, previously submitted by Ship4wd. The Consulate replies on June 23, confirming the certificate was issued by proper authorities in Indonesia and carries serial number G3YM4TO. This affirms that the document is genuine in origin, but not necessarily valid under U.S. import criteria.

U.S. authorities—namely APHIS and CBP—require certificate content to conform with specific pest mitigation and documentation standards. Per 7 CFR § 319.40-3(b), the certificate must verify that fumigation occurred prior to inspection and clearly cite treatment details. The verified certificate, while authentic in issuer terms, omits that sequence and lacks date cross-references, rendering it noncompliant under APHIS protocols.

Similarly, CBP standards under 19 CFR § 141.0–141.113 focus on traceability and entry admissibility. Errors in consignee identification and formatting within the EAN document compromise regulatory sufficiency regardless of issuer legitimacy.

Ship4wd’s reliance on a document that fails to meet U.S. standards—without correction or disclosure—continues to violate carrier conduct requirements under 46 U.S.C. § 41102(c). Roger’s consular outreach underscores EcoBamboo’s intent to verify source legitimacy but also

exposes the broader disconnect between document authenticity abroad and regulatory admissibility at entry, a distinction critical to Lacey Act compliance under 16 U.S.C. § 3372(f).

Linked Evidence: [EV-Q](#)

[Back to Table of Contents](#)

EX-R | Ship4wd Deflection of Responsibility Amid CBP Hold and USDA Documentation Failure

Date: June 24–25, 2025

Type: Uploaded email thread between EcoBamboo (Roger Waterloo) and Ship4wd representatives regarding Entry #20160957

Regulation:

- APHIS Import Protocols – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (treatment sequencing and inspection standards)
- CBP Entry Review and Export Control – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b) (document admissibility and re-export procedure)
- Lacey Act Declaration Validity – 16 U.S.C. § 3372(f) (verification of pest-free import origin under U.S. law)
- FMC Conduct Rule – 46 U.S.C. § 41102(c) (forwarder procedural transparency and duty of care)

Tags: CBP hold, USDA quarantine review, certificate sequencing failure, Ship4wd deflection, re-export refusal, fumigation misrepresentation, EcoBamboo compliance assertion

Annotation:

EX-R captures a contentious uploaded email exchange following USDA’s pest determination and CBP’s hold on Entry #8PY 20160957. On June 24–25, Ship4wd Business Process Owner Shay Miletsky disputes EcoBamboo’s claims that documentation sequencing failures triggered CBP’s intervention. He argues Roger’s assessment is personal and not CBP’s official position, maintaining that none of the involved parties are at fault and that the infestation was unforeseeable.

Roger responds by clarifying that his conclusions are based on due diligence and a direct exchange with CBP Agriculture Specialist Ms. Hickerson. He points out USDA/APHIS violations—especially the improper sequencing of inspection before fumigation—and reiterates that CBP flagged the shipment under the AG DOC REVIEW protocol prior to arrival. This activation implies that the documentation was either incomplete, improperly sequenced, or not submitted on time, as CBP would not have triggered this flag had USDA/APHIS standards been satisfied in advance.

Ship4wd’s claim that EcoBamboo declined a re-fumigation option is also refuted, with Roger stating that USDA explicitly prohibited post-arrival treatment due to container spacing constraints. Moreover, no documentation exists showing USDA ever approved a remediation plan.

Despite repeatedly claiming “no fault,” Ship4wd introduces a cost-sharing proposal. Roger challenges the logic of this offer, noting that initiating cost coverage suggests an implicit recognition of procedural failure—especially in the absence of any third-party audit or remedial transparency. He closes the exchange by signaling legal escalation unless new information or a formal resolution is forthcoming.

The annotation highlights clear regulatory breakdowns, documentation submission failures, and Ship4wd’s procedural contradictions under 46 U.S.C. § 41102(c).

Linked Evidence: [EV-R](#)

[Back to Table of Contents](#)

EX-S | CBP Enforcement Clarification on Entry Denial, USDA Permit Failure, and Broker Misconduct

Date: June 27, 2025

Type: Email exchange between CBP (Chief Agriculture Specialist Kenneth Western) and EcoBamboo (Roger Waterloo)

Regulation:

- USDA-APHIS Import Requirements – 7 CFR § 319.40-3(b), APHIS Manual § 2.5.1 (mandatory U.S. port fumigation and permit pre-clearance)
- CBP Documentation System & Export Enforcement – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b) (entry documentation admissibility and Immediate Export enforcement protocols)
- Lacey Act Declaration Validity – 16 U.S.C. § 3372(f) (accurate shipment and consignee identification for lawful import)
- FMC Conduct Obligations – 46 U.S.C. § 41102(c) (broker procedural diligence and transmission accuracy under freight arrangement)

Tags: USDA permit failure, CBP entry denial, actionable pest finding, re-export order, EAN revision, DIS documentation omission, broker misrepresentation, shipment delay, EcoBamboo inquiry

Annotation:

EX-S documents CBP’s formal enforcement stance regarding the denial of container DFSU1191760 under Entry #8PY 20160957. On June 27, 2025, Chief Agriculture Specialist

Kenneth Western confirms the shipment was refused entry due to the absence of a USDA Import Permit, which was never submitted via CBP's Document Image System (DIS) inside ACE. Western reiterates USDA's requirement that fumigation occur at a designated U.S. port, disqualifying prior treatment performed in Indonesia. This finding directly implicates EcoBamboo's broker and forwarder in documentation sequencing failure.

Western also confirms that actionable insects were discovered during inspection, and per APHIS emergency protocols, destruction is not permitted; the shipment must be exported under Immediate Export control. A critical procedural note emerges: the original EAN dated June 12, 2025 contained errors, and upon Roger's notification to USDA officer Nikki Fludd, a corrected EAN was reissued on June 16. Clearit failed to transmit this revised version until June 26, which Roger duly signed and returned on June 27. The delay in delivering accurate documentation within USDA's seven-day compliance window introduces potential grounds for penalty escalation.

Roger's email probes three oversight areas: (1) whether CBP prioritizes broker versus importer inquiries, (2) irregularities between initial and final treatment/phytosanitary certificates, and (3) the shipment complications stemming from incorrect consignee data submitted by Clearit. CBP declines to address broker-side decisions, emphasizing that only Clearit can explain documentation origins and sequencing errors.

This annotation underscores CBP's position on regulatory enforcement, while amplifying the procedural breakdown caused by third-party brokers. EcoBamboo's proactive correction of the EAN and timely compliance are documented, contrasted sharply with broker-side delays, reinforcing the basis for liability under 46 U.S.C. § 41102(c).

Linked Evidence: [EV-S](#)

[Back to Table of Contents](#)

EX-T | Formal Demand Regarding APHIS Permit Omission and Entry Denial

Date: June 30, 2025

Type: Email and certified letter from EcoBamboo (Roger Waterloo) to Ship4wd (Shay Miletsky) and representatives

Regulation:

- APHIS Import and Treatment Protocols – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (mandatory pest mitigation, documentation formatting, and import approval)
- CBP Entry and Export Enforcement – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b) (documentation admissibility and enforcement following actionable pest findings)

- Lacey Act Declaration Integrity – 16 U.S.C. § 3372(f) (lawful importation with accurate consignee and cargo data)
- FMC Conduct Rule – 46 U.S.C. § 41102(c) (duty of care in document transmission and third-party oversight)
- UCC Breach Remedies – UCC § 2-615, § 2-703 (commercial breach recognition and demand for cure)

Tags: APHIS permit omission, USDA import failure, CBP entry rejection, broker misrepresentation, commercial breach, formal demand, re-export directive, EcoBamboo restitution, Clearit documentation faults

Annotation:

EX-T marks Roger Waterloo’s formal demand for resolution following USDA/APHIS permit omission and CBP’s denial of Entry #8PY 20160957. Issued on June 30, 2025 via email, Roger details regulatory failures by Ship4wd and its customs broker, Clearit. The demand references eleven exhibits evidencing Clearit’s failure to submit the USDA permit to CBP’s DIS/ACE platform, sequencing errors in treatment and inspection documents, misrepresentation of consignee data, and absence of attachments during regulatory engagement.

Ship4wd’s prior correspondence (June 25, 2025) claims that no party is at fault and attributes responsibility to unforeseeable circumstances. They assert that a re-fumigation option was declined by Roger, despite USDA’s previously documented rejection of post-arrival treatment due to container spacing constraints. Roger’s reply dismisses these assertions, reiterating that both USDA and CBP confirmed the shipment’s inadmissibility due to documentation and sequencing failures—not infestation cause alone.

Roger demands a written response by July 2, 2025, specifying two actionable outcomes: corrective resolution enabling shipment release, or reimbursement for commercial losses, regulatory penalties, and administrative costs. His tone remains fact-driven and legally assertive, aligning his claim with UCC breach standards and indicating further escalation through consumer protection agencies and possible FMC referral.

This annotation builds upon EX-P through EX-S by consolidating evidence and framing the issue as a commercial and regulatory breach—not an incidental occurrence. It demonstrates EcoBamboo’s consistent documentation trail and escalating posture under lawful precedent.

Linked Evidence: [EV-T](#)

[Back to Table of Contents](#)

EX-U | Ship4wd Response Series to Formal Demand and Re-Export Coordination Request

Date: June 30 – July 3, 2025

Type: Email exchange between EcoBamboo (Roger Waterloo) and Ship4wd (Shay Miletsky and representatives)

Regulation:

- APHIS Permit and Treatment Standards – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (import inspection and treatment sequencing requirements)
- CBP Entry and Custody Protocols – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b), 19 CFR § 18.25(c) (entry denial, Immediate Export deadlines, port removal)
- FMC Conduct Standards – 46 U.S.C. § 41102(c) (duty of care and procedural responsibility under freight services)
- Lacey Act Declaration Validity – 16 U.S.C. § 3372(f) (accurate consignee and pest-free documentation obligation)
- UCC Remedies for Breach – UCC § 2-615, § 2-703 (failure of performance and demand for cure after disruption)

Tags: Ship4wd deflection, CBP export directive, USDA permit omission, missed removal deadline, non-delegable duty, regulatory breach, refusal of accountability, EcoBamboo escalation

Annotation:

EX-U chronicles the exchange initiated by Roger Waterloo's formal demand regarding APHIS permit omission and USDA/CBP entry denial for container DFSU1191760 (Entry #20160957). In a response dated June 30, 2025, Ship4wd acknowledges receipt of Roger's email but avoids direct accountability. The company cites ongoing attempts to obtain re-export quotes and CBP guidance on potential abandonment costs, declining to commit to the July 2 resolution deadline.

Roger's reply, dated July 1, emphasizes that the dispute is not contingent on third-party decisions but on Ship4wd's failure to verify and secure USDA/APHIS clearance. He cites confirmed CBP responses received within 24 hours and criticizes Ship4wd's vague reassurances and continued deflection. Roger references marketing materials and onboarding communications from both Ship4wd and Clearit that explicitly positioned the firms as full-service compliance agents. These materials formed the basis for his reasonable reliance under commercial law and federal freight obligations.

The email reasserts that any delays related to origin agents or abandonment procedures remain Ship4wd's internal burden under U.S. import law and do not excuse the missed permit submission. Roger underscores that the container remains non-compliant and biologically

sensitive under USDA enforcement guidelines. He references 19 CFR § 18.25(c), stating that Immediate Export shipments must be removed from port custody within 15 calendar days—a deadline that expired on June 27 following the EAN issued June 12.

Ship4wd's July 3 message confirms that CBP has now directed re-export as the only option. The firm requests Roger contacts his seller to authorize acceptance. Roger's previous email had already outlined this procedural need and emphasized that such tasks, including seller coordination and agent retention, fall within Ship4wd's operational scope per service commitments.

This exchange extends the accountability gap exposed in EX-R through EX-T. Roger's reply escalates the matter by placing notice that continued delays will result in referral to CBP and CADRS for formal assessment under FMC and federal import law. EX-U sets a critical stage for jurisdictional escalation and reinforces the deadline-sensitive nature of regulatory breaches involving biological commodities under APHIS and CBP enforcement policy.

Linked Evidence: [EV-U](#)

[Back to Table of Contents](#)

EX-V | Final Demand Regarding Ship4wd Non-compliance and APHIS Permit Failure

Date: July 3, 2025

Type: Email exchange and certified letter from EcoBamboo (Roger Waterloo) to Ship4wd representatives and affiliates

Regulation:

- APHIS Entry and Treatment Conditions – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (import eligibility and mandatory pest mitigation standards)
- CBP Export Enforcement and Entry Review – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b), 19 CFR § 18.25(c) (Immediate Export deadline and removal from port custody)
- Lacey Act Declaration Validity – 16 U.S.C. § 3372(f) (accurate consignee and biological compliance documentation)
- FMC Conduct Rule – 46 U.S.C. § 41102(c) (procedural diligence and forwarder duty of care)
- UCC Remedies for Breach – UCC § 2-615, § 2-703 (demand for cure and damages following failure to perform)

Tags: APHIS permit omission, USDA non-compliance, CBP removal deadline, biological threat, re-export directive, Ship4wd delay, EcoBamboo escalation, CADRS referral, certified complaint

Annotation:

EX-V documents Roger Waterloo's continued effort to compel action from Ship4wd regarding Entry #20160957 and container DFSU1191760, following CBP's entry denial and USDA pest determination. In a final email dated July 3, 2025, Roger summarizes outstanding breaches: Ship4wd's failure to file the required USDA Import Permit through CBP's DIS system, the unresolved contradictions surrounding the sequencing and validity of fumigation records, and their persistent deflection of responsibility to the seller and overseas agents.

Roger highlights that Clearit and Ship4wd marketed themselves as full-service import compliance handlers, including USDA and CBP coordination. The letter emphasizes that EcoBamboo's reliance on this representation is both commercially reasonable and legally enforceable under UCC § 2-615. Ship4wd's July 3 response acknowledged CBP's mandate for re-export, but failed to take decisive logistical steps or produce documentation substantiating its fumigation claims or CBP/APHIS outreach.

Roger's demand reiterates USDA and CBP protocol under 19 CFR § 18.25(c)—namely, that detained biological cargo must be removed from port custody within 15 days of EAN issuance (June 12). That deadline expired June 27, establishing a further breach and reinforcing the urgency of resolution. Roger informs Ship4wd that oversight of the case has now been extended to CBP Allegations Division and CADRS for regulatory review. He issues a 48-hour window for final response, demanding all documentation and a full accounting of actions taken.

The letter closes with a warning that continued delays will result in formal complaints to the FMC and further regulatory and commercial enforcement. This entry elevates EcoBamboo's position from dispute resolution to agency intervention, clearly demarcating regulatory fault lines and asserting non-delegable responsibility on Ship4wd's part.

Linked Evidence: [EV-V](#)

[Back to Table of Contents](#)

EX-W | Ship4wd Rejection of Import Liability and Misrepresentation of Broker Scope

Date: June 25 – July 10, 2025

Type: Email exchange between EcoBamboo (Roger Waterloo) and Ship4wd representatives (Shay Miletsky and affiliates)

Regulation:

- APHIS Permit and Import Protocols – 7 CFR § 319.40-3(b), 7 CFR § 305.5 (pre-clearance permit requirements and import eligibility criteria)

- CBP Entry Review and Enforcement Policy – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b), 19 CFR § 18.25(c) (entry eligibility, re-export timelines, and port custody removal)
- Broker Responsibility and Delegation Rules – 19 CFR §§ 111.26–111.28 (broker recordkeeping, non-delegable duty, and importer coordination expectations)
- FMC Conduct Rule – 46 U.S.C. § 41102(c); 46 CFR § 515.32(c) (third-party oversight liability under door-to-door logistics arrangements)
- UCC Remedies and Breach Protocol – UCC § 2-615, § 2-703 (duty of performance and failure to cure)

Tags: USDA permit omission, liability denial, importer blame shifting, broker misrepresentation, CBP hold, re-export delay, biological risk, EcoBamboo escalation

Annotation:

EX-W documents Ship4wd’s formal rejection of accountability for the CBP denial of Entry #20160957 and the USDA permit omission. In an extended email thread dated June 25–July 10, 2025, Business Process Owner Shay Miletsky asserts that USDA/APHIS permit acquisition was the sole responsibility of the importer, citing correspondence from CBP Agriculture Specialist Kenneth Western. Ship4wd denies that Clearit was retained for anything beyond customs clearance and claims no obligation to vet permit requirements or fulfill compliance coordination. Roger’s July 1–3 emails rebut this assertion, providing pre-engagement marketing and onboarding materials from both Clearit and Ship4wd that clearly advertise comprehensive compliance handling, including permit management and USDA coordination.

Roger cites the existence of delegated Power of Attorney and formal acceptance of USDA-related services by Clearit. His letter reinforces that APHIS permit verification is a forwarder liability under 46 CFR § 515.32(c) and 19 CFR §§ 111.26–111.28—regulations that mandate clear transmission of documentation and duty of care upon service delegation. Additionally, Ship4wd attributes the infestation to improper drying by the supplier and alleged seller-side fumigation issues. Roger responds with CBP’s factual determination that the issue lies not with the infestation’s origin but with the documentation and sequencing failure—specifically, the pre-export fumigation which contradicts U.S. import protocols requiring treatment after arrival.

Ship4wd accuses Roger of withholding CBP’s re-export notice, but Roger refutes this by citing his proactive communication with CBP, documented timelines, and warnings to Ship4wd beginning in late June. Roger reasserts that Clearit and Ship4wd ignored regulatory deadlines under 19 CFR § 18.25(c), leaving a biologically non-compliant container in port past the 15-day window, thereby creating potential liability under USDA enforcement.

Ship4wd later agrees to proceed with re-export and recommends updating the B/L to name the original supplier. Roger's reply indicates he already initiated these steps but reiterates that the forwarder is responsible for logistical execution per their advertised service commitments.

EX-W deepens the liability narrative by capturing Ship4wd's attempt to retroactively limit its scope of responsibility and shift the procedural failure onto the importer—despite evidence that their platform promoted full-service import and compliance management.

Linked Evidence: [EV-W](#)

[Back to Table of Contents](#)

EX-X | Ship4wd Conditional Acceptance of CADRS Mediation and Continued Deflection of Import Liability

Date: July 10–23, 2025

Type: Email exchange and attached Power of Attorney between EcoBamboo (Roger Waterloo) and Ship4wd (Shay Miletsky and representatives), copied to FMC and CADRS

Regulation:

- APHIS Import and Permit Protocols – 7 CFR § 319.40-3(b), 7 CFR § 340.0 et seq. (permit obligation and shipment compliance under USDA oversight)
- CBP Entry Enforcement and Removal Timelines – 19 CFR § 141.0–141.113, 19 CFR § 123.41(b), 19 CFR § 18.25(c) (entry denial and Immediate Export framework)
- Broker Compliance Boundaries – 19 CFR §§ 111.26–111.29 (broker limitations, recordkeeping, and importer expectation protocols)
- FMC Jurisdiction and Conduct Oversight – 46 U.S.C. § 41102(c), 46 CFR § 502.63 (dispute resolution mechanism and carrier misconduct enforcement)
- UCC Breach and Performance Failure – UCC § 2-615, § 2-703 (nonperformance and demand for cure)

Tags: CADRS invitation, mediation deadline, USDA permit failure, liability rejection, Power of Attorney, CBP export mandate, dispute escalation, FMC complaint readiness, EcoBamboo final notice

Annotation:

EX-X captures the formal exchange between EcoBamboo and Ship4wd regarding mediation via FMC's Consumer Affairs & Dispute Resolution Services (CADRS). Roger Waterloo, on July 23, 2025, reaffirms EcoBamboo's position that Ship4wd holds direct liability for Entry #20160957's failure, citing its delegated coordination of compliance agents and submission duties—including Clearit. Roger requests confirmation of mediation participation by July 25, and copies the CADRS

for awareness. He reiterates that any faults linked to foreign agents or documentation failures fall under Ship4wd's service scope.

Ship4wd responds by stating they do not oppose mediation but must internally assess the suitability of CADRS due to their non-U.S. base. They also note that re-export remains a priority regardless of mediation outcome and request Roger to review and sign the enclosed Power of Attorney to initiate port release procedures. The firm continues to assert that USDA permit acquisition was the importer's responsibility, referencing the CBP letter dated June 27, which Ship4wd interprets as confirmation of sole importer fault.

Roger had previously cited CBP and USDA correspondence to distinguish between consignee identification and execution responsibility, arguing that advertised services included full regulatory coordination. Ship4wd's reply avoids engaging these specifics and attributes possible infestation causes to product dryness at origin—an explanation refuted in prior correspondence and documents, including EX-T through EX-W.

EX-X formalizes the transition from unilateral demands to structured mediation and highlights Ship4wd's continued deflection of operational responsibility despite regulatory mandates. It marks EcoBamboo's final attempt to resolve the matter collaboratively before submitting a formal complaint and initiating enforcement under FMC jurisdiction.

Linked Evidence: [EV-X](#)

[Back to Table of Contents](#)

EX-Y | POA Dispute & CBP Misrepresentation Thread

Date Range: July 23–24, 2025

Type: Email chain (EcoBamboo ↔ Ship4wd, incl. FMC cc)

Regulations:

- CBP Export Clearance – 19 CFR § 192.2; 15 CFR § 30.3(e)
- FMC Carrier Conduct Rule – 46 U.S.C. § 41102(c)
- Civil False Statement Liability – 13 U.S.C. §§ 301–307
- Delegation of Authority Standards – UCC § 2-707

Tags: POA dispute, CBP misrepresentation, agent conduct, coercive tactics, mediation request, procedural withdrawal, FMC violation, consignment ambiguity

Annotation: EX-Y captures email correspondence between EcoBamboo and Ship4wd concerning export clearance for container DFSU1191760. The dispute centers on Ship4wd's submission of a blank Power of Attorney with no consignee, agent, or instructions—followed by demands for Roger Waterloo to sign and return without amendments. This was later contradicted by

Ship4wd's retroactive demand for a formal letter—separate from the POA—authorizing re-export. The sudden shift from requesting a signed blank POA to insisting on a structured authorization letter raises questions about procedural transparency, legal intent, and compliance posture.

Roger responds that, as a sole proprietor operating under a DBA, company letterhead and VAT formatting are not required under 15 CFR § 30.3(e), rendering Ship4wd's request unfounded. The correspondence also reveals coercive tactics, including threats of CBP sanctions and abandonment, despite Roger's active attempt to engage CADRS mediation and uphold procedural fairness.

Ship4wd's posture contradicts export delegation protocols under 19 CFR § 192.2 and falsely implies obligations not codified for sole proprietors. Roger's insistence on written documentation and refusal to delegate authority without clarity formalizes his regulatory defense and highlights agent misconduct. The sequence substantiates EcoBamboo's claim of improper delegation handling, misrepresentation of CBP enforcement, and FMC conduct violations.

Linked Evidence: [EV-Y](#)

[Back to Table of Contents](#)

EX-Z | Clause-by-Clause Annotation: Ship4wd “Final Notice” Email July 29, 2025

Date: July 29, 2025

Type: Email from Ship4wd HQ (Shay Miletsky) **Recipients:** Roger Waterloo, CBP stakeholders, Ship4wd and Clearit staff

Regulations Cited:

- 46 U.S.C. § 41104(a)(1) – FMC prohibition on unfair or deceptive practices
- 46 CFR § 545.4 – FMC interpretive rule on detention, demurrage, and billing transparency
- 19 CFR § 141.32 – CBP Power of Attorney standards
- 19 CFR § 12.0–12.9 – CBP import restrictions and abandonment protocols

Tags: liability deflection, abandonment threat, POA contradiction, cost-sharing bluff, CBP misattribution, unfair conduct

Annotation:

EX-Z dissects Ship4wd's July 29 “final notice” email line-by-line to highlight misrepresentations and regulatory discrepancies. Each claim is contrasted against documented facts and applicable

agency rules. Key tactical themes emerge: overstated engagement, omitted agency responsibility, post hoc contractual enforcement, and threat-based escalation.

Email Statement	Factual Discrepancy	Regulatory Impact	Implication
"You declined fumigation on June 16"	USDA protocol prohibits post-arrival treatment	CBP/APHIS restrictions override broker proposals	Invalid remediation offer misrepresented
"June 6 marks last free day"	Ship4wd (Shilpa) later stated no demurrage applicable on June 10	FMC § 545.4(b)(2) – billing must reflect actual carrier terms	Misrepresented urgency and cost burden
"We sought off-site treatment and cost sharing"	No compliant option offered; USDA rejected all	CBP/USDA disallow unauthorized pest remediation	Cost-sharing admits exposure and contradicts non-liability stance
"You ignored CBP's re-export instructions"	CBP states responsibility lies with importer and broker ; Clearit had POA	CBP § 141.32 – legal duty with designated agent	Selective framing to shift burden despite contractual structure
"I sent 10 emails seeking cooperation"	Most were replies to Roger's outreach; no proactive contact evidenced	FMC § 41104(a)(1) – deceptive narrative in dispute framing	Volume inflation used to fabricate diligence
"You are bound by our booking Terms & Conditions"	No evidence of pre-shipment presentation or acceptance	FMC mandates contract transparency; CADRS packet shows absence	Post hoc invocation lacks enforcement weight
"Cargo will be considered abandoned..."	Only CBP can determine abandonment; POA required to execute	CBP § 12.0–12.9 governs disposal; carrier lacks unilateral authority	Regulatory posturing used for intimidation, not resolution

Clause Highlight: “Your appointed freight forwarder”

Ship4wd’s self-description as the “appointed freight forwarder” is more than just a title—it’s a tacit admission of delegated control. Under FMC regulations:

- 46 CFR § 515.31–515.32 outlines that appointed forwarders are bound by duties of care, transparency, and third-party oversight.
- By claiming this status, Ship4wd assumes full operational responsibility over coordination, documentation sequencing, and regulatory compliance—including USDA permit advisement and customs preparation.

Their email’s attempt to assign fault while simultaneously affirming control over the shipment reflects rhetorical contradiction. The term “appointed” directly undercuts their denials of liability documented in EX-W and EX-X.

This clause thereby acts as a liability trigger, confirming that:

- They were not passively involved—they were granted logistical authority.
- Their conduct is subject to FMC enforcement, as they fulfilled the role of a regulated forwarding entity under U.S. import law.

Note:

This exhibit converts a tactical email into a demonstrable artifact of procedural misrepresentation, circumstantial liability admission, and narrative distortion. It reinforces EcoBamboo’s claim that Ship4wd’s operational conduct violates multiple FMC and CBP standards, justifying regulatory intervention.

Linked Evidence: [EV-Z](#)

[Back to Table of Contents](#)

EX-AA | WhatsApp Transcript Ms. Monica Halim, PT Kemasindo Cepat Nusantara (KCN): Multiverse Exim Pvt Ltd (Multiverse) Accepts Refumigation Costs (Post-EAN)

Date: August 5, 2025

Type: Mobile correspondence (WhatsApp)

Regulation:

- CBP Enforcement Action Notification (EAN) dated June 12, 2025
- USDA fumigation regulations under 7 CFR § 319.40
- FMC procedural standards under 46 CFR § 545.4(d)

Tags: refumigation, re-export mandate, misrepresentation, cost concealment, liability transfer

Annotation:

On August 5, Ms. Halim (KCN) confirms that **Multiverse agreed to cover re-fumigation costs dating back to June 12**, the date CBP issued its EAN. That directive mandated **immediate re-export** — not fumigation — as the only allowable corrective action.

Despite knowing Multiverse had accepted cost responsibility, **Ship4wd and Clearit concealed this fact** and instead presented EcoBamboo with **quotes for fumigation on U.S. soil**, a process categorically prohibited under CBP’s directive. These efforts were not only misleading but procedurally invalid — designed to **shift costs to EcoBamboo** under false pretenses.

This exhibit highlights two key failures:

- **Misdirection by Ship4wd and Clearit**, who offered irrelevant quotes for domestic fumigation while withholding the fact that a third party (Multiverse) had already agreed to cover costs under the only valid pathway: re-export.
- **EcoBamboo’s reasonable refusal** to approve any action until proper disclosure and written accountability were provided.

Linked Evidence: [EV-AA](#)

[Back to Table of Contents](#)

EX-AB | WhatsApp Transcript: Ms. Monica Halim (KCN) & Ship4wd Context

Date: August 2025

Type: Mobile correspondence (WhatsApp)

Regulation:

- FMC interpretive rule under 46 CFR § 545.4(d)
- CBP communication practices under 19 CFR § 141.0–141.113

Tags: re-export, JKT port agent, Ship4wd delegation, refusal for written liability, cost ambiguity

Annotation:

WhatsApp messages from Ms. Halim reveal several key procedural breakdowns:

- Ms. Halim confirms Ship4wd verbally assured her they would cover re-export costs, yet refused to provide written confirmation when directly requested.
- Ms. Halim attempted to persuade Multiverse to assume cost liability as a workaround once Ship4wd declined formal documentation.
- EcoBamboo clearly stated refusal to approve re-export without formal written responsibility for both re-export and demurrage costs, demonstrating due diligence rather than obstruction.

Linked Evidence: [EV-AB](#)

[Back to Table of Contents](#)

EX-AC | Email from Multiverse: Written Confirmation of Cost Assumption

Date: August 5, 2025

Type: Inbound email correspondence

Regulation:

- CBP bonding under 19 CFR § 141.63
- FMC Shipping Act compliance under 46 U.S.C. § 41102(c)

Tags: written confirmation, re-export, DND charges, liability assurance, DFSU1191760

Annotation:

This email from Akshay Divekar, Director of Multiverse Exim Pvt Ltd, provides unequivocal written confirmation that Multiverse assumes full financial responsibility for both accrued demurrage and re-export freight costs associated with container DFSU1191760.

Notably:

- Multiverse affirms *no portion of costs* will be invoiced to or charged back against Mr. Roger Waterloo, *now or in the future*.
- The commitment is declared *independent of any third-party billing arrangements or carrier terms*.
- The email establishes a clear basis for initiating the re-export process, contingent only upon cargo owner (Mr. Waterloo's) written approval.

Linked Evidence: [EV-AC](#)

[Back to Table of Contents](#)

EX-AD | WhatsApp Directive to Bypass AQIS Gas-Out Requirement

Date: August 6, 2025

Type: Phytosanitary treatment non-compliance (fumigation; operational directive)

Regulation:

- AQIS fumigation protocol requiring 24-hour gas-out before release (as referenced in chat)
- CBP/USDA sanitary and phytosanitary treatment documentation obligations under Entry #8PY-20160957
- Evidence protocol for Loss and Damages under Entry #8PY-20160957

Tags: improper fumigation, gas-out omitted, AQIS bypass, willful non-compliance, concealment, WhatsApp evidence

Annotation:

WhatsApp thread between Monica H. (KCN) -purple bulb- and Piyush (Multiverse) -black bulb- documents an explicit decision to avoid AQIS-standard fumigation: “normal fumigation only,” “no need of AQIS,” and, after “No need gas out?” confirmation, “just do normal fumigation.” The chat acknowledges the AQIS requirement (“AQIS fumigation... requires gas out 1x24 hours”) and rejects it, showing knowledge, deliberate bypass, and intent to conceal. This substantiates fumigation non-compliance and supports violations cataloged in EX-A to EX-AD.

Linked Evidence: [EV-AD](#)

[Back to Table of Contents](#)

EX-AE | Dashboard Lockout During Active Regulatory Dispute

Date: August 11–12, 2025

Type: Platform access obstruction (web portal)

Regulation:

- FMC procedural standards under 46 CFR § 515.31(e)
- CBP and USDA documentation obligations linked to shipment records
- Evidence protocol for Loss and Damages under Entry #8PY-20160957

Tags: access denial, record obstruction, booking confirmation, payment verification, retaliatory conduct

Annotation:

On August 11, 2025, I attempted to log into my Ship4wd dashboard with the intent to retrieve booking confirmation and proof of payment for shipment/order ID: 0H16V7f2bZ. This documentation was required to support the Loss and Damages claim presently under review by FMC and CBP.

Despite it being my first login attempt, the dashboard immediately displayed a red system notification: “You been locked for too many failed attempts, please try again in an hour from your last attempt, or contact our customer support.” No prior warnings were issued, and the message persisted through August 12.

The lockout obstructed access to shipment records, POA visibility, and USDA/CBP-linked correspondence—critical components previously retrievable from the portal. Given Ship4wd’s exclusive reliance on the dashboard for record dissemination, this denial materially hindered fact verification and may constitute a procedural breach under 46 CFR § 515.31(e).

The timing and nature of the lockout reinforce ongoing documentation asymmetry noted in Exhibits EX-A through EX-AC and strengthen the narrative of selective record control identified in the Declaration and Violation Matrix.

Linked Evidence: [EV-AE](#)

[Back to Table of Contents](#)

EX-AF | Index Closure & Escalation Addendum for Entry #8PY-20160957

Date: July 29, 2025

Purpose: Declarative Closure Statement – Exhibit Conclusion & Formal Escalation

Summary: This final exhibit closes the importer’s internal record for Entry #8PY-20160957 and container DFSU1191760, restates violations from EX-A to EX-AE, and marks the transition from importer coordination to external review by CBP Allegations Division and FMC CADRS.

Key issues documented across the exhibit timeline include:

- Failure to secure required USDA/APHIS Import Permit
- Improper sequencing of inspection and treatment procedures
- Late and mis-formatted delivery of compliance documentation
- Broker disclosure gaps and ACE/DIS transmission failures
- Repeated deflections despite full-service claims by Ship4wd and its broker

The importer, EcoBamboo, asserts:

- That regulatory accountability resides with the designated forwarder and broker under FMC and CBP delegation protocols
- That the denial of USDA import eligibility and CBP clearance resulted directly from preventable procedural breaches
- That timely, documented outreach was made to both service providers seeking corrective action, but these requests were ignored or deflected

Final Notes:

This document does not introduce new evidence but functions as a procedural end marker and regulatory handoff. The importer retains the right to submit additional records and agency correspondence in alignment with:

- 19 CFR §§ 111.26–111.29 (Broker conduct, recordkeeping, and importer protections)
- 46 CFR §§ 515.31–515.32 (Forwarder obligations and transparency)
- All relevant enforcement provisions under USDA/APHIS, CBP, and FMC jurisdiction

EcoBamboo remains available to provide:

- Original import certificates and phytosanitary records
- Broker agreements, onboarding documentation, and power of attorney disclosures
- Full email archive reflecting the importer's rebuttals, document requests, and procedural appeals
- Additional clarification or technical remediation documentation upon request

A corresponding packet of exhibits and complaint statements has been submitted to:

- FMC CADRS (Case #250255)
- CBP Allegations Team (Ref #e00009640)

This closure statement finalizes the annotated record and initiates external agency responsibility for resolution and enforcement review.

[Back to Table of Contents](#)

Losses & Damages

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760
FMC Submission – CBP Allegation Ref: e00009640

Date: Aug 29, 2025

Subject: Submission of Losses Annotation Digest – Documentation of Post-Disruption Consequences

To whomever this may concern,

As sole proprietor of EcoBamboo, the enclosed [Losses Annotation Digest](#) reflects more than expenses—it documents the consequence of preventable disruption, borne personally. Each loss is traceable to a single failure: the undelivered shipment. What followed—reordering, overseas travel, supply chain repair, missed margins, time diverted from growth, and contractor trust eroded—was not planned. It was endured. These impacts are not hypothetical. They’ve compromised future readiness and introduced reputational strain that no invoice can quantify. This packet is not submitted in frustration, but in discipline. It records the financial strain, credibility erosion, and quiet uncertainty that now shadow my work. I present it not as rebuttal, but as reckoning—because the pathway to resolution demands visibility first.

In addition to the documented operational losses, the disruption has triggered severe personal financial consequences. With no income since the incident, I have relied exclusively on credit facilities to sustain basic living and business continuity. This reliance has led to a nearly 200-point decline in my credit score, severely restricting access to future credit and compounding financial vulnerability. The situation now includes the imminent risk of foreclosure on my primary residence, with all attendant consequences: loss of housing stability, potential legal proceedings, damage to long-term financial reputation, and the erosion of any remaining personal equity. These are not speculative outcomes—they are unfolding realities. The absence of income, paired with mounting interest obligations and deteriorating creditworthiness, has placed me in a position of involuntary insolvency. These impacts are not the result of mismanagement, but of a procedural failure beyond my control. They underscore the urgency of resolution—not only for business recovery, but for personal survival.

The packet comprises six annotated Exhibits, each framed for regulatory readability and substantiated by underlying documentation. These Exhibits detail:

- [EX-31 – Verified Out-of-Pocket Expenses](#)
- [EX-32 – Interest Charges Attributable to Disputed Transactions](#)
- [EX-33 – Lost Sales & Sample Fence Material](#)
- [EX-34 – Operational Time Loss \(EcoBamboo Commitment Assessment\)](#)
- [EX-35 – Re-Order Bamboo \(Post-Dispute Financial & Operational Impact\)](#)

- [EX-36 – Market Timing Breakdown & Strategic Cycle Loss](#)
- [EX-37 – Consolidated Loss Summary & Two-Scenario Impact Statement](#)

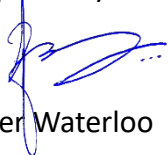
Each figure is formatted for proportional review under CBP and FMC standards. Loss projections are benchmarked against verifiable precedent, and claims avoid duplication across outcomes. Where the record reflects disruption-induced costs—such as those captured in Exhibit 35—these were triggered solely by shipment failure. None of the detailed travel, freight, or oversight burdens would have occurred had the contracted delivery proceeded. These are not baseline operating expenses; they are the consequence of procedural collapse. Any future procurement—if covered by the defendant (Ship4wd)—will be planned independently and does not replicate these documented losses.

The exhibits reflect a conservative snapshot of financial harm as of August 3, 2025. It is important to note that both categories—time loss and interest—are dynamic. Each day of delay adds quantifiable cost, reinforcing the urgency of resolution.

I do not yet know whether resolution will yield settlement, closure, or continuation. But I know the cost of waiting. I have spent over a year building EcoBamboo's foundation. The disruption period itself spans roughly three months—since early June 2025—during which I chose restraint: documentation over escalation, formatting over frustration, and orderly correspondence over noise. This memo—and the digest behind it—reflect a commitment not only to process, but to principle.

Should clarification be required, I remain available to assist. My contact details are globally formatted and up to date. Until then, I respectfully await review—and trust that credibility will be recognized not only in what I've endured, but in how I've chosen to present it.

Respectfully submitted,



Roger Waterloo
dba EcoBamboo

Phone: 479-402-1830

Email: rodebos@hotmail.com

Losses and Damages

EXHIBIT ANNOTATION DIGEST — EX-31 TO EX-37

Roger Waterloo dba EcoBamboo | Entry #8PY-20160957 | Container DFSU1191760

Compiled: Aug 29, 2025 — South Coffeyville, OK

This digest provides concise, regulator-focused annotation's for Exhibits EX-31 through EX-37, directly reflecting the chronology as mentioned in the Losses and Damages cover memo.

EX-31 – Verified Out-of-Pocket Expenses

Date Range: July 15, 2024 - present

Type: Financial documentation and supporting records

Regulation:

- FMC Protocols under 46 U.S.C. § 41102(c) (Shipping Act – just and reasonable practices)
- CBP Import Requirements under 19 CFR § 141.0–141.113 (general import procedures and supporting records)
- Reasonable Cost Recovery under Common Law and Commercial Standards (for excluded damages and justified loss tracking)

Tags: EcoBamboo expenditures, travel and lodging, sample coordination, procurement, invoice verification, financial transparency

Hyperlinked Documentation Structure

All entries listed in the attached spreadsheet (EX-31 – Verified Out-of-Pocket Expenses) are linked to their respective supporting exhibits. Each expense features an active hyperlink under the column titled "Exhibit Reference", directing reviewers to the folder EX-31 - Receipts EV31 to EV31-M.

To preserve audit clarity and procedural integrity, non-verifiable incidental expenditures have been excluded. Only substantiated costs with formal receipts, booking confirmations, or payment records are presented.

Total Verified Expenses: \$12,783.92 USD

Linked Evidence: [EX-31 – Verified Out-of-Pocket Expenses](#)

[Back to Table of Contents](#)

EX-32 – Interest Charges Attributable to Disputed Transactions

Date Range: August 2024 – August 2025

Type: Credit card statements and transactional breakdown

Regulation:

- FMC Protocols under 46 U.S.C. § 41102(c) (Shipping Act – just and reasonable practices)
- CBP Import Requirements under 19 CFR § 141.0–141.113 (supporting financial documentation and proportional cost attribution)
- Reasonable Cost Recovery under Commercial Standards (for indirect loss justification)

Tags: purchase interest, Clearit dispute, Ship4wd delay, EcoBamboo logistics, financial impact, Chase credit activity

Annotation:

This Exhibit presents interest charges incurred from EcoBamboo-related credit card payments, including expenses tied to logistics, travel, vendor platforms, and disputed transactions involving Ship4wd and Clearit USA.

The total attributed interest is \$1,251.59, calculated from two primary credit accounts—Chase United Explorer and Chase Freedom Unlimited—based on itemized statements covering the dispute period. While minor expenses were incurred on additional cards, the interest calculations for those accounts are immaterial and have therefore not been included. All such expenses are nonetheless reflected within the broader out-of-pocket summary.

Only interest associated with verified EcoBamboo activity is included. Personal or unrelated transactions appearing in supporting statements have been blocked out for privacy and excluded from the Exhibit. All data is backed by card statements and aligns with proportional financial tracking reflected in the document titled *Interest Charges Attributable to Disputed Transactions.docx*.

Interest Calculations:

- **Freedom Card:** Interest calculated *as of the last statement dated August 2, 2025*.
- **United Card:** Interest calculated *as of the last statement dated Aug 26, 2025*.

Note:

No interest has been projected beyond these dates. Updated statements are expected in September and will be integrated upon release. Interest charges will accumulate monthly due to no resolution reached in the EcoBamboo vs Ship4wd logistics dispute.

Linked Evidence: [EX-32 - Interest Charges Attributable to EcoBamboo](#)

[Back to Table of Contents](#)

EX-33 – Lost Sales & Sample Fence Material

Date Range: Projected losses from June 7, 2025 – Aug 2, 2025

Type: Product loss valuation and opportunity impact statement

Regulation:

- Commercial Damage Valuation under U.S. Trade Practices (margin-based sales loss justification)
- FMC Protocols under 46 U.S.C. § 41102(c) (failure to deliver resulting in quantifiable harm) • CBP Import Standards under 19 CFR § 141.0–141.113 (shipment accountability and commercial impact)

Tags: EcoBamboo sheets, bamboo fencing prototype, Clearit USA mishandling, lost market exposure, product development setback

Annotation:

This Exhibit documents two categories of loss stemming from logistics failures involving disputed shipments:

1. EcoBamboo Sheet Sales Loss:

- Quantity: 350 sheets (6ft height x 8ft wide)
- Sales Basis: Linear footage 2800ft at \$35.00/ft gross
- Net recoverable margin: \$23.67/ft after \$11.33/ft in production costs
- Total lost margin: **\$66,270.00** based on undelivered inventory

See attached purchase intent letter from D&S Sunderman ([EV-33](#)) confirming full acquisition of 2,800 ft.

2. Sample Fence Pole Loss + Opportunity Disruption:

- Quantity: 180 structural bamboo poles (4 inch x 10ft), designated for prototype installation
- Material value: 180 x \$42/pole = **\$7,560.00**
- Opportunity loss: Product launch delay, cancelled supplier demonstrations, and revenue deferment
- First-month projected revenue missed: **\$9,750.00**

Total 1 + 2 impact: \$83,580.00

Evidence for this Exhibit is detailed in EX-31, EX-32, and EX-34 through EX-37. These records collectively document the financial harm, procedural breakdowns, and commercial exposure referenced herein.

[Back to Table of Contents](#)

EX-34 – Operational Time Loss (EcoBamboo Commitment Assessment)

Date Range: July 15, 2024 – August 27, 2025

Type: Time allocation statement with valuation basis and activity description

Regulation:

- FMC Protocols under *46 U.S.C. § 41102(c)* (Shipping Act – reasonable and equitable loss attribution)
- CBP Financial Documentation under *19 CFR § 141.0–141.113* (supporting expense recovery with activity-based justification)
- Commercial Recovery Standards (indirect labor valuation for regulatory engagement)

Tags: time loss, operational investment, EcoBamboo workload, dispute management, regulatory preparation, foundational setup, hourly valuation

Annotation:

This Exhibit presents a quantifiable valuation of personal time invested in EcoBamboo operations over a 58-week period (July 15, 2024–August 27, 2025)—documenting strategic setup, regulatory correspondence, and dispute response tied to activities with Ship4wd and Clearit USA.

Time was allocated across two phases:

- **Phase 1 (Pre–April 1, 2025):** Foundational tasks, including market research, travel for vendor scouting (Indonesia), business modeling, contractor outreach, and system setup.
- **Phase 2 (Post–April 1, 2025):** Regulatory correspondence, packet preparation, annotated digest creation, and submission management across CBP, CADRS, and FMC.

Declaration of Time Loss Valuation

EcoBamboo’s time loss valuation is presented with respect to two realistic operational outcomes, based on a rate of \$65/hour and an average daily investment of approximately **5 hours**:

- **Scenario A – Permanent Disruption:** Under this outcome, the full 58-week period from July 15, 2024 through August 27, 2025 is claimed. Time invested totals **2,050 hours**, valued at **\$133,250.00**, reflecting the complete cessation of business continuity and strategic redirection caused by Respondent’s conduct.
- **Scenario B – Operational Continuity:** Under this mitigated outcome, only the disruption period from June 7 through August 27, 2025 is claimed. Time invested totals **410 hours**, valued at **\$26,650.00**, reflecting the focused recovery efforts and regulatory response during the documented disruption window.

This bifurcated structure ensures proportionality, avoids duplication, and aligns with the documented activities presented throughout the Complaint and supporting exhibits.

Lost time will accumulate daily at \$325.00/day due to no resolution reached in the EcoBamboo vs Ship4wd logistics dispute.

[Back to Table of Contents](#)

EX-35 – Re-Order Bamboo (Post-Dispute Financial & Operational Impact)

Date Range: June 2025 – August 2025

Type: Cost breakdown and procedural burden resulting from shipment failure and procurement re-initiation

Regulation:

- FMC Protocols under *46 U.S.C. § 41102(c)* (Shipping Act – fair practices and disruption recovery)
- CBP Import Requirements under *19 CFR § 141.0–141.113* (new shipment documentation and fumigation records)
- Commercial Mitigation Standards (cost-of-failure recovery and supplier trust restoration)

Tags: freight premium, supplier surcharge, fumigation, travel to Indonesia, vendor confidence, shipment oversight, operational risk, procurement failure recovery

Annotation:

This Exhibit outlines direct and indirect losses tied to the **reordering of bamboo materials** from Indonesia following dispute-triggered shipment failure. It reflects both financial impacts and procedural burdens borne by EcoBamboo during the recovery effort.

Quantifiable Costs:

Cost Component	Amount
Freight Premium (Sea Priority + Surcharge)	\$8,400.00
Supplier Price Increase (+12% Post-Dispute)	\$3,920.00
Fumigation, Inspection, QA Procedures	\$2,250.00
Travel for Oversight & Vendor Restoration	\$3,800.00
Time Invested in Reordering (52 hours @ \$65/hr.)	\$3,380.00
Total Financial Impact	\$21,750.00

The listed costs reflect estimates based on prior purchases, travel records, and documented procedural efforts from the initial reordering process. While not verifiable through third-party

invoices for this specific disruption, each line item corresponds to comparable expenditures borne by EcoBamboo under similar procurement circumstances.

[Back to Table of Contents](#)

EX-36 – Market Timing Breakdown & Strategic Cycle Loss

Date Range: May 2025 – March 2026

Type: Operational timing analysis and promotional viability impact

Regulation:

- 46 U.S.C. § 41102(c) – FMC Shipping Act (reasonable expectations, strategic harm)
- 19 CFR § 141.0–141.113 – CBP import protocols (shipment timing, procedural feasibility)
- Commercial Loss Recovery Frameworks – (seasonal viability, market cycle disruption)

Tags: shipment delay, promotional misalignment, seasonal constraints, contractor coordination, strategic entry loss, non-recoverable cycle

Annotation:

A reordered shipment, even under optimal conditions, cannot meet the original market window. The recovery process—including travel to Indonesia, product selection, and production—requires a minimum of two months. Shipping adds another two months, placing the earliest possible delivery in January 2026.

Due to seasonal constraints in exterior construction, installation of the product and promotional fencing cannot begin before March 2026. This delay pushes the promotional launch well beyond the viable construction season for 2025, rendering the campaign misaligned with contractor availability and market readiness.

The consequence is not merely a postponed launch—it is a missed strategic cycle. EcoBamboo’s entry timeline, contractor coordination, and promotional sequencing were all calibrated to a mid-2025 deployment. The opportunity lost cannot be recovered within the current fiscal or seasonal framework.

[Back to Table of Contents](#)

EX-37 – Consolidated Loss Summary & Two-Scenario Impact Statement

Date Range: July 2024 – August 2025

Type: Financial loss consolidation and submission closure anchor

Regulation:

- 46 U.S.C. § 41102(c) – FMC Shipping Act (just and reasonable practices, loss attribution)

- 19 CFR § 141.0–141.113 – CBP import protocols (documentation and financial traceability)
- Commercial Loss Recovery Frameworks – (scenario-based valuation and claim clarity)

Tags: dispute-related losses, reimbursement justification, annotated summary, business continuity framing, financial documentation, operational valuation

Contextual Note:

As detailed in Exhibit 36, the missed market cycle and promotional delay extend into early 2026, with no viable recovery within the current fiscal framework. Exhibit 37 consolidates the financial losses incurred between July 2024 and August 2025, reflecting both direct costs and operational disruptions. The valuation is scenario-based, allowing for regulatory interpretation without presupposing business continuation or closure. EX-37 builds directly upon the strategic timing analysis in EX-36, translating missed opportunity into quantifiable financial consequence.

Annotation:

EX-37 serves as the final consolidation Exhibit for EcoBamboo’s regulatory packet, summarizing all verified losses and procedural costs incurred from the shipment failure and ensuing dispute with Ship4wd and Clearit USA.

To provide transparency and avoid overstated attribution. Losses are presented under two distinct operational scenarios, each structured to reflect proportional impact without presupposing outcome or preference.

Scenario A – Permanent Business Disruption (No Continuity)

Claims reflect full impact under the assumption that EcoBamboo operations do **not** resume following dispute fallout:

Exhibit	Description	Amount (USD)
EX-31	Verified Out-of-Pocket Expenses	\$12,783.92
EX-32	Interest Charges	\$1,251.59
EX-33	Product Sales Loss & Sample Disruption	\$83,580.00
EX-34	Operational Time Loss (Full Period)	\$133,250.00
Total	Scenario A – Permanent Disruption	\$230,865.51

Scenario B – Operational Continuity (Post-Dispute Recovery)

Losses assume partial business recovery and include time and costs tied to mitigation efforts and procurement re-initiation:

Exhibit	Description	Amount (USD)
<u>EX-31</u>	Verified Out-of-Pocket Expenses	\$12,783.92
<u>EX-32</u>	Interest Charges	\$1,251.59
<u>EX-33</u>	Product Sales Loss & Sample Disruption	\$83,580.00
<u>EX-34</u>	Operational Time Loss (Disruption Period Only)	\$26,650.00
<u>EX-35</u>	Reorder Costs & Oversight Burden	\$21,750.00
Total	Scenario B – Business Continuity	\$146,015.51

Time-loss and interest charges in both scenarios are calculated through the date of submission; damages continue to accrue daily and will be recalculated at time of ruling.

Submission Role & Rationale:

EX-37 is intended as both a financial anchor and framing statement for regulatory review. It reinforces the proportional basis of EcoBamboo’s claim by:

- Avoiding duplication of recovery costs across scenarios
- Documenting effort-based impacts (e.g. EX-34 time loss) vs outcome-based (e.g. EX-35 reorder)
- Aligning valuation logic with FMC and CBP eligibility criteria
- This bifurcated structure avoids speculative forecasting and instead anchors each claim in documented consequence, aligning with the evidentiary standards of both FMC and CBP.
- Providing agency reviewers with clear scenario-contextual justification

Each amount cited is cross-linked to its respective Exhibit with underlying documentation traceable via the Exhibit Index. This structure upholds the standards of factual transparency and procedural integrity requested under multi-agency review.

[Back to Table of Contents](#)

CERTIFICATE OF SERVICE

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

Dated: August 28, 2025

South Coffeyville, Oklahoma

I, **Roger Waterloo dba EcoBamboo**, hereby certify that on **August 29, 2025**, I caused a true and correct copy of the foregoing **Formal Complaint and Exhibit Index – Roger Waterloo dba EcoBamboo v. Ship4wd, Inc.** to be served upon Respondent **Ship4wd, Inc.**, c/o Mr. Shay Miletsky, Consumer Success & Business Process Owner and corresponding representative from the onset of the dispute, by electronic mail as follows:

Ship4wd, Inc.

c/o Mr. Shay Miletsky

Consumer Success & Business Process Owner

9 Andrei Sakharov Street

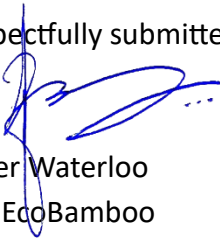
Haifa 3190500, Israel

Email: shay.miletsky@ship4wd.com

The documents were transmitted in PDF format, with all exhibits hyperlinked and indexed for ease of navigation. A courtesy copy of the complete submission has been retained to maintain an identical reference set for audit integrity.

Complainant requested confirmation of receipt from Respondent via email dated August 30, 2025. All documents were served in full via a **OneDrive link**, replicating the folder structure and contents of the link provided to FMC.

Respectfully submitted,



Roger Waterloo

dba EcoBamboo

712 Shawnee St.

South Coffeyville, OK 74072

Tel: 479-402-1830

Email: rodebos@hotmail.com

[Back to Table of Contents](#)

Notarized Verification of Complaint

Roger Waterloo dba EcoBamboo | Entry: 8PY-20160957 | Container: DFSU1191760

This sworn verification pertains to the entirety of the Complaint submitted by Roger Waterloo dba EcoBamboo under the Shipping Act of 1984, as amended. Complainant affirms that all factual statements, procedural representations, and relief requests contained therein are made in good faith and are true and correct to the best of his knowledge, information, and belief.

I, **Roger Waterloo**, doing business as **EcoBamboo**, hereby declare under penalty of perjury under the laws of the United States of America that the statements made in the foregoing **Formal Complaint and Exhibit Index – EcoBamboo v. Ship4wd, Inc.** are true and correct to the best of my knowledge, information, and belief.

Dated: 8/29 2025 South Coffeyville, Oklahoma

Signature: [Signature] Roger Waterloo, dba EcoBamboo, Complainant

Address: 712 Shawnee St, South Coffeyville, OK 74072

Telephone: 479-402-1830

Email: rodebos@hotmail.com

Notary Public Block State of Oklahoma County of Nowata

Subscribed and sworn before me on this day of August 29, 2025, by Roger Waterloo, known to me or satisfactorily proven to be the person whose name is subscribed to the foregoing instrument.

Signature of Notary Public: Chelsea Brackett

My Commission Expires: 07/01/29

Notary Public, State of Oklahoma

